

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

JIAMDO SETA Re-Compete

This solicitation is issued under the authority of FAR 16.5 under the Seaport program of multiple award IDIQ contracts. To the extent that the words "offer" or "proposal" appear in this solicitation, they shall be construed to mean "quote" (or "quotation"), and to the extent that the word "offeror" appears in this solicitation, it shall be construed to mean "quoter".

This requirement is a Task Order (TO), and follow on to Task Order N00189-21-F-3023 issued under the terms and conditions of Seaport contract N00178-19-D-7693. The incumbent is General Dynamics Information Technology.

Quoters may submit questions requesting clarification of the Solicitation's requirements to Daniel Moore via email at daniel.l.moore172.civ@us.navy.mil. Responses to the questions will be provided via email and, if applicable, revisions to the solicitation will be incorporated via an amendment.

NOTICE OF INCLUSION OF AN ORGANIZATIONAL CONFLICT OF INTEREST CLAUSE

a) This solicitation contains a clause entitled Organizational Conflict of Interest, pursuant to FAR subpart 9.5, which is to be included in any task order to be awarded hereunder. a) Prospective offerors are requested to furnish with their proposals, information pertaining to any existing contract/order between the offeror and the companies engaged in furnishing to the United States Government any services or supplies pertaining to the support identified in the Performance Work Statement (PWS) of this solicitation or listed below, if any, which may have a bearing on any existing or potential conflict of interest within the meaning of the clause. Such information shall include:

1. The identity of the company;
2. A description of the work to be performed under the contract/order with the company or the relationship between the offeror/quoter and the company;
3. The dollar amount of the contract/order or any other ownership interest;
4. The period of performance;
5. A description of the internal control taken by the offeror/quoter to avoid potential organizational conflict of interest; and
6. Any other information requested by the Contracting Officer.

b) The basis for including an Organizational Conflict of Interest clause is that, in the performance of the prospective task order, the contractor:

1. Could have access to nonpublic information giving the contractor a competitive advantage on future requirements;
2. Could recommend future Integrated Air and Missile Defense (IAMD) requirements utilizing specific technologies, services, or designs that may enhance its own competitive status on future requirements;
3. Could present metrics, studies, and analysis results, and make recommendations in a manner that influences the development of future Joint Integrated Air and Missile Defense Organization (JIAMDO) requirements in a specific technical direction;
4. Could be involved in setting ground rules for future requirements, and;

5. Could be in a position wherein the comparative analysis tasks result in the contractor evaluating its own work or work of a partner company performed under a separate contract, impairing the contractor's objectivity in performing the tasks.

6. Could utilize other contractors' proprietary information, gained during performance of this requirement, to enhance their own competitive status.

c) This solicitation contains a clause entitled Organizational Conflict of Interest which is to be included in the Task Order to be awarded hereunder. The language of the clause is subject to revision, based on questions /concerns raised by prospective offerors to the attention of the Contracting Officer prior to solicitation closing.

PREPARATION COSTS

This Request for Quotations (RFQ)/Solicitation does not commit the Government to pay for the preparation and submission of a quotation.

The Contracting Officer will make the source selection using the following two-step process.

Step One - Viability:

No later than 5:00 PM EST (Philadelphia, PA), 1 May 2026, interested sources must submit, on no more than two (2) (single sided) pages, a description of their experience on prior contracts they consider most similar to the Performance Work Statement (PWS). Interested sources should use their judgement on how to best demonstrate through their two page submission that they're a viable competitor. For example, a source with relatively limited experience related to the PWS could address how it has the commitment of key personnel or other contractors with more relevant experience.

The Contracting Officer will evaluate each submission and determine which sources are viable competitors for award. The Contracting Officer may communicate with competitors, without regard to the rules of FAR 15.3 concerning competitive range determinations and discussions, if such communications will enhance the Contracting Officer's determination of whether the quoter is a viable competitor for award. A determination a competitor is nonviable doesn't necessarily mean the Contracting Officer believes the competitor can't successfully perform the PWS. A competitor could be determined nonviable because of their experience relative to other competitors. The Contracting Officer will notify those sources determined nonviable that they are eliminated from further award consideration, and ONLY invite sources determined viable to submit a quote in response to Step Two.

Step One submissions shall be emailed to daniel.l.moore172.civ@us.navy.mil in .PDF format. The deadline for Step One submissions is 1 May 2026 at 5:00 PM EST (Philadelphia, PA).

Step Two - CPFF Best Value Tradeoff:

Upon the completion of Step One, the Contracting Officer will request the following information from the viable competitors: Refer to the Solicitation (RFQ) Section L for entirety of instructions and Section M for evaluation criteria. In addition to the information submitted by competitors, the Contracting Officer may consider other information reasonably related to the evaluation factors, to include the personal knowledge of the competitor's commercial and Government customers, and past performance databases. The Contracting Officer isn't obligated to evaluate all information submitted by each competitor. For example, the Contracting Officer may curtail evaluation of a competitor's submission if at any point the Contracting Officer determines the competitor's quote is unlikely to represent the best value.

The Contracting Officer may communicate with a competitor at any time during Step Two without regard to the FAR 15.3 rules concerning competitive range determinations and discussions. The Contracting Officer may also identify the competitor whose quote is likely to represent the best value and hold negotiations solely with that source to finalize the order and/or negotiate more favorable terms for the Government.

Any source determined not viable/nonviable during the Step One evaluation is ineligible to submit for Step Two consideration and will immediately be removed from the competition. Only sources determined viable in Step One are eligible for award consideration and will be invited to submit a non-cost (technical) and cost/price quotation through email.

Step Two submissions shall be emailed to daniel.l.moore172.civ@us.navy.mil in .PDF format. The deadline for Step One submissions is 24 May 2026 at 5:00 PM EST (Philadelphia, PA).

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

The resultant task order will be a Cost Plus Fixed Fee (Level of Effort) (CPFF (LOE)) type order. The annual estimated level of effort (labor categories and corresponding number of hours) is identified below.

LEVEL OF EFFORT (COST TYPE CONTRACT) (SEP 2015)

(a) The level of effort for the performance of tasks specified in the Performance Work Statement (PWS) during the period from the start of contract performance to 10 months thereafter is based upon 59,200 estimated manhours of direct labor. If all options are exercised by the government, the level of effort for the performance of this contract will be increased to a total level of effort of 343,360 hours estimated manhours of direct labor (hereinafter referred to as the "Estimated Total Hours").

(b) The estimated composition by labor category of the Estimated Total Hours is as follows:

Labor Category	Base Hours (10-Months)	Option I Hours (12-Months)	Option II Hours (12-Months)	Option III Hours (12-Months)	Option IV Hours (12-Months)
Program Manager (K)	1,600	1,920	1,920	1,920	1,920
Deputy Program Manager	800	960	960	960	960
Financial Management Support	800	960	960	960	960
Senior Project Manager	6,400	7,680	7,680	7,680	7,680
Senior Security Specialist	1,600	1,920	1,920	1,920	1,920
Functional and Administrative Support	4,800	5,760	5,760	5,760	5,760
Senior Requirements Analyst	6,400	7,680	7,680	7,680	7,680
Senior PPBE Analyst	1,600	1,920	1,920	1,920	1,920
Senior Technical Analyst	1,600	1,920	1,920	1,920	1,920
Senior Operational Concept Analyst	4,800	5,760	5,760	5,760	5,760
Senior System Engineer	6,400	7,680	7,680	7,680	7,680
Senior Capability Analyst	6,400	7,680	7,680	7,680	7,680
Senior Operational Analyst	6,400	7,680	7,680	7,680	7,680
Project Manager	1,600	1,920	1,920	1,920	1,920

Security Specialist	1,600	1,920	1,920	1,920	1,920
System Engineer	6,400	7,680	7,680	7,680	7,680
Totals	59,200	71,040	71,040	71,040	71,040

(c) The Estimated Total Hours include overtime and subcontracting hours but exclude holidays, sick leave, vacation days and other absences; or other non-productive time.

(d) The number of manhours expended per month may fluctuate in the pursuit of performance of the contract performance work statement, provided that such fluctuation does not result in the utilization of the total manhours of effort prior to the expiration of the contract. The number of manhours for any labor category may be utilized by the contractor for any other labor category if necessary in performance of the contract.

(e) The contractor shall not be obligated to continue performance beyond the Estimated Total Hours, except that the Contracting Officer may require the contractor to continue performance in excess of the Estimated Total Hours until the total estimated cost has been expended. The government will not be obligated to pay fee on any hours expended in excess of the Estimated Total Hours. Any hours expended in excess of the Estimated Total Hours shall be excluded from all fee computations and adjustments. The Contracting Officer may also require the contractor to continue performance in excess of the total estimated cost until the Estimated Total Hours have been expended. In no event, however, will the Contracting Officer, pursuant to this paragraph (e), require the contractor to continue performance in excess of the Estimated Total hours if the Contracting Officer is requiring or has required the contractor to continue performance in excess of the total estimated cost. Nor will the Contracting Officer, pursuant to this paragraph (e), require the contractor to continue performance in excess of the total estimated cost if the Contracting Officer is requiring or has required the contractor to continue performance in excess of the Estimated Total Hours. The Contracting Officer may extend the period of performance in order to expend either the total estimated cost or the Estimated Total Hours.

(f) If at any time during the performance of this contract the contractor expends in excess of 85% of the available estimated manhours of direct labor, the contractor shall immediately notify the Contracting Officer in writing. Nothing herein shall be construed to alter or waive any of the rights or obligations of either party pursuant to the clause entitled "Limitation of Cost" and/or "Limitation of Funds."

PAYMENT OF FIXED FEE

The fixed fee for work performed under this contract is \$___*___ provided that approximately ___**___ hours of technical effort are employed by the contractor in performance of this contract. If substantially fewer than ___**___ hours of technical effort are employed, the fixed fee shall be equitably reduced to reflect the reduction of work. The Government shall make monthly payments of the fixed fee at the rate of \$___***___ per direct labor hour invoiced by the contractor. All payments shall be in accordance with the provisions of FAR 52.216-8, "Fixed Fee," and FAR 52.216-7, "Allowable Cost and Payment." Payments shall be subject to the withholding provisions of Paragraph (b) of FAR 52.216-8, provided that the total of all such monthly payment shall not exceed eighty-five (85%) percent of the fixed fee. Any balance of fixed fee due the contractor shall be paid to the Contractor, and any over-payment of fixed fee shall be repaid to the Government by the Contractor, or otherwise credited to the Government at the time of final payment.

	Fixed Fee Quoted*	Estimated Level of Effort**	Fixed Fee per Hour***
Base	To be specified at time of award	59,200	* /59.200
Option I	To be specified at time of award	71,040	* /71.040
Option II	To be specified at time of award	71,040	* /71.040
Option III	To be specified at time of award	71,040	* /71.040
Option IV	To be specified at time of award	71,040	* /71.040

LEVEL OF EFFORT - TASK ORDER PERFORMANCE

It is understood and agreed that for this CPFF task order, the number of hours and the total dollar amount for each labor category specified in this task order are estimates only and shall not limit the use of hours or dollar amounts in any labor category which may be required. Accordingly, in the performance of this CPFF task order, the contractor shall be allowed to adjust the quantity of labor hours provided within labor categories specified in the order provided that in so performing the contractor shall not in any event exceed the ceiling price restrictions set forth in this order, including modifications thereof.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
6000	Base Period - Systems Engineering and Technical Assistance (SETA) support provided to Joint Staff (JS), J8, Joint Integrated Air and Missile Defense Organization (JIAMDO) in accordance with the Performance Work Statement (PWS). (RDT&E) Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 6001	Option I Period - Systems Engineering and Technical Assistance (SETA) support provided to Joint Staff (JS), J8, Joint Integrated Air and Missile Defense Organization (JIAMDO) in accordance with the Performance Work Statement (PWS). (RDT&E) Option Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 6002	Option II Period - Systems Engineering and Technical Assistance (SETA) support provided to Joint Staff (JS), J8, Joint Integrated Air and Missile Defense Organization (JIAMDO) in accordance with the Performance Work Statement (PWS). (RDT&E) Option Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 6003	Option III Period - Systems Engineering and Technical Assistance (SETA) support provided to Joint Staff (JS), J8, Joint Integrated Air and Missile Defense Organization (JIAMDO) in accordance with the Performance Work Statement (PWS). (RDT&E) Option Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 6004	Option IV Period - Systems Engineering and Technical Assistance (SETA) support provided to Joint Staff (JS), J8, Joint Integrated Air and Missile Defense Organization (JIAMDO) in accordance with the Performance Work Statement (PWS). (RDT&E) Option Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
7000	Base Period - Travel in support of CLIN 6000. Not-to-exceed (NTE) \$636,363.64 plus applicable burdens. (RDT&E) Pricing Arrangement: Cost No Fee	1	Lot		
7001	Base Period - Other Direct Costs (ODCs) in support of CLIN 6000. Not-to-exceed (NTE) \$68,181.82 plus applicable burdens. (RDT&E) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7002	Option I Period - Travel in support of CLIN 6001. Not-to-exceed (NTE) \$700,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		

Option Line Item 7003	Option I Period - Other Direct Costs (ODCs) in support of CLIN 6001. Not-to-exceed (NTE) \$150,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7004	Option II Period - Travel in support of CLIN 6002. Not-to-exceed (NTE) \$700,000.00 plus applicable burdens. (RDT&E) Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7005	Option II Period - Other Direct Costs (ODCs) in support of CLIN 6002. Not-to-exceed (NTE) \$150,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7006	Option III Period - Travel in support of CLIN 6003. Not-to-exceed (NTE) \$700,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7007	Option III Period - Other Direct Costs (ODCs) in support of CLIN 6003. Not-to-exceed (NTE) \$150,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7008	Option IV Period - Travel in support of CLIN 6004. Not-to-exceed (NTE) \$700,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7009	Option III Period - Other Direct Costs (ODCs) in support of CLIN 6004. Not-to-exceed (NTE) \$150,000.00 plus applicable burdens. (RDT&E) Option Pricing Arrangement: Cost No Fee	1	Lot		

Section C - Description/Specifications/Statement of Work

Section C Description/Specifications/Statement of Work

PERFORMANCE WORK STATEMENT (PWS)
JOINT INTEGRATED AIR AND MISSILE DEFENSE ORGANIZATION (JIAMDO)
SYSTEMS ENGINEERING AND TECHNICAL ASSISTANCE (SETA) SUPPORT SERVICES

1.0 GENERAL INFORMATION

1.1 PURPOSE

This Performance Work Statement (PWS) contains the requirements and standards for on-site support of systems engineering and technical assistance to the Joint Integrated Air and Missile Defense Organization (JIAMDO) in the Pentagon, Washington D.C. On-site support is the execution of the duties in this PWS at the Place of Performance during the Period of Performance.

1.2 BACKGROUND

Integrated Air and Missile Defense (IAMD) is the capability to detect, classify, intercept, and destroy or negate the effectiveness of enemy aircraft and missiles prior to launch or while in flight to protect the U.S., deployed forces, our friends, Allies, selected assets, and population centers. Further information on IAMD can be found within Joint Publication 3-01 "Countering Air and Missile Threats."

As a division within the Joint Staff and in accordance with 10 USC 155, JIAMDO supports the Chairman of the Joint Chiefs of Staff (CJCS) in the roles of global military integration from the perspective of IAMD and any other functions associated with CJCS duties in 10 USC 153.

JIAMDO aligns under the J-8 Directorate "Force Structure, Resources, and Assessments." The J-8 develops capabilities, conducts studies, analysis, and assessments, and evaluates plans, programs, and strategies for the CJCS. The J-8 is charged with providing support to the CJCS for evaluating and developing force structure requirements. The J-8 conducts joint, bilateral, and multilateral war games and interagency politico-military seminars and simulations. It develops, maintains, and improves the models, techniques, and capabilities used by the Joint Staff and combatant commands to conduct studies and analyses for the CJCS. Among other duties, the Director of the J-8 serves as the secretariat for the Joint Requirements Oversight Council (JROC), whose responsibilities are codified within 10 USC 181.

JIAMDO is led by a 2-star general or flag officer who acts as the Director and is dual-hatted as the Deputy Director for Force Protection (DDFP) within the J-8. JIAMDO serves as the advisor to the CJCS and central lead organization within the DoD for concepts, requirements, capability development, and analysis involving the Joint Force IAMD enterprise. The vision of the Director of J-8 (DJ8) and the Director of JIAMDO is that JIAMDO serves as the CJCS's IAMD trusted expert and mission integrator for the IAMD enterprise. This includes coordination and synchronization across military services, combatant commands, the Office of the Secretary of Defense (OSD), DoD agencies, whole-of-government, and allies and partners. JIAMDO must provide advice to senior leaders that maximizes strategic and operational effects with affordability, employability, and risk.

Primary duties of JIAMDO include, but are not limited to, the following:

- Joint Staff senior leader support via briefings, information papers, and research.
- Leadership of the Air and Missile Defense Working Group, an O-6 level subordinate body of the 2-star level Protection Functional Capabilities Board (P-FCB). In the role of DDFP, the Director of JIAMDO serves as chair of the P-FCB. The P-FCB is subordinate to the Joint Capabilities Board (JCB) and JROC.
- Navigation of IAMD requirements via the Joint Capabilities Integration and Development System (JCIDS), in accordance with the CJCS Instruction (CJCSI) 3170 series.
- Representation of the Joint Staff in the Missile Defense Executive Board (MDEB) governance process, including leadership of the Operational Forces Standing Committee, chaired by the DJ8.
- Coordination amongst other Joint Staff directorates
- High-fidelity operational analyses, namely the Nimble Fire operator-in-the-loop live, virtual, and constructed simulation exercises and the Joint Regional IAMD Capability Mix (JRICM) studies
- Development, maturation, and demonstration of low technology readiness level capabilities with the intent to transfer to a military service.

To perform these duties, JIAMDO organizes into three branches: Warfighter Requirements Branch (WaRB), Capabilities Development Branch (CDB), and Capabilities Assessment Branch (CAB). To oversee these branches, JIAMDO leadership operates from a Front Office (FO). JIAMDO is authorized to re-organize as needed but does not anticipate any major changes during the Period of Performance in this contract.

JIAMDO operates at Secret, Top Secret (TS), Sensitive Classified Information (SCI), Alternative Compensatory Control Measures (ACCM), and Special Access Required (SAR) security levels.

Further information on JIAMDO's mission and duties can be found within JIAMDO's 2022 Operating Charter.

2.0 REQUIREMENTS

The Contractor shall support all tasks associated with JIAMDO's mission and duties as described in this PWS.

2.1 TECHNICAL

2.1.1 GENERAL DUTIES

General duties consist of functions that are common across all branches and align with on-site professional services directly with JIAMD Government personnel.

2.1.1.1 The Contractor shall serve as a subject matter expert in the mission area of IAMD and provide advice to the Government based on that expertise. This mission area includes but is not limited to:

- Ballistic missile defense
- Cruise missile defense
- Hypersonic missile defense
- Counter uncrewed aerial systems (UAS)
- Counter rocket, artillery, mortar
- Defense against aviation (including fixed wing and rotorcraft)
- Space-based effects
- Passive defense

2.1.1.2 The Contractor shall prepare briefings, draft point papers, and write information papers at required security classification levels and appropriate for senior level audiences up to a 4-star level. Each position will be responsible for preparing and presenting high-level Government briefings and presentations. These products may be delivered via PowerPoint slides, documents, spreadsheets, or verbally per the direction of the Government. These products may involve the creation of complex graphics, synthesized analysis, and critical thoughts pieces.

2.1.1.3 The Contractor shall prepare routine and emergent correspondence, presentations, graphics, analysis and other documentation, as required.

2.1.1.4 The Contractor shall prepare high quality, fully coordinated staff action packages meeting standards required for the Chairman of the Joint Chiefs of Staff (CJCS), Vice Chairman of the Joint Chiefs of Staff (VCJCS), Director, Joint Staff (DJS) or Vice Director (VDJS) signature, at times with short notice.

2.1.1.5 The Contractor shall prepare, review, edit or comment on various surveys, analyses, requirements documents, assessments, or issue papers.

2.1.1.6 The Contractor shall travel, as requested and approved by the Government, to attend conferences, tabletops exercises, workshops, live fire exercises, demonstrations, or other events and meetings.

2.1.1.7 The Contractor shall advise the Government on spending of JIAMD funds and assist with execution of funds as directed.

2.1.1.8 The Contractor shall represent the Government, as directed, in engagements with external organizations or with Joint Staff leadership, other than for inherently Government Functions.

2.1.1.9 The Contractor shall support efforts within and across branches, divisions, directorates, and agencies as directed by JIAMD leadership.

2.1.1.10 The Contractor shall provide the data required to branch leadership in order to support JIAMD weekly Division Chief reporting requirements.

2.1.1.11 The Contractor shall arrange, lead, conduct, and conferences, tabletops exercises, workshops, live fire exercises, demonstrations, or other events and meetings within the Department of Defense. At times, the Contractor may have short notice of meeting occurrence due to the needs of Joint Staff senior leaders.

2.1.1.12 The Contractor shall maintain awareness of research, developmental, demonstration activities of relevant IAMD programs within the Department of Defense through meetings, conferences, and individual discussion.

2.1.1.13 The Contractor shall maintain awareness of research, developmental, demonstration activities of relevant IAMD programs outside the Department of Defense through conference attendance followed by trip reports.

2.1.1.14 The Contractor shall support or lead initial and interim reviews of efforts that are deemed to be major analytical tasks by the Government. These reviews will occur on a frequency determined by JIAMD leadership with an objective of ensuring cost, schedule, and performance goals are achieved. Reviews may require coordination with stakeholders outside of JIAMD. At a minimum, major analytical tasks include Capability Portfolio Management Reviews, Nimble Fire, Homeland Defense, Cruise Missile Combat Identification, and JRICM.

2.1.1.15 The Contractor shall develop and maintain a project schedule for each major analytic task that shows all tasks, durations, dependencies, and deliverables, ensure the Government is apprised of upcoming milestones or needs of the Government in a timely manner, and provide the schedule to the Government upon request.

2.1.1.16 The Contractor shall support integrated assessments of the Joint Force to execute objectives within the National Defense Strategy (NDS), National Military Strategy (NMS), and Joint Warfighting Concept (JWC) from current year to the end of the current fiscal year Future Years Defense Program (FYDP) and exploring beyond the end of the FYDP.

2.1.1.17 The Contractor shall support advanced concept technology demonstrations (ACTD), Rapid Defense Experimentation Reserve (RDER), Replicator, or any other technology demonstrations, military utility assessments, exercises, or simulations, as requested, by providing coordination, evaluating the technology, and acting as a liaison to the sponsoring agency

2.1.1.18 The Contractor shall support Service, OSD, and CCMD IAMD exercises, simulations, war games and related events, including travel as necessary, and providing a trip report upon return.

2.1.1.19 The Contractor shall assist the Government with compliance with all security directives, policies, and procedures.

2.1.1.20 The Contractor shall comply with Joint Staff policies and directives.

2.1.1.21 The Contractor shall maintain and support the maintenance of accurate files of documentation, records, and reports in accordance with CJCSM 5760.01A VOL 1 (Joint Staff and Combatant Command Records Management Manual: Volume 1 Procedures) and CJCSM 5760.01A, VOL II (Joint Staff and Combatant Command Records Management Manual: Volume II - Disposition Schedule).

2.1.1.22 The Contractor shall assist JIAMD with the routing of financial transactions through J8 and Joint Staff Comptroller's office. This requires use of accounting systems such as Commanders' Resource Integration System (CRIS) and Comptroller's Accounting and Budget System (CABS) to prepare and distribute JIAMD funding documents to approved agencies in accordance with applicable funding instructions and subject to approval by JIAMD leadership.

2.1.1.23 The Contractor shall track JIAMD funds after distribution to approved agencies to acknowledge acceptance either for reimbursable or direct purposes and accurately record/track the funding documents to ensure funding targets at all levels have not been exceeded. The contractor will also utilize applicable accounting systems and financial tracking systems to track funding documents through the stages of accounting.

2.1.2 DUTIES SPECIFIC TO THE WARFIGHTER REQUIREMENTS BRANCH

The mission of the Warfighter Requirements Branch is to represent warfighter required IAMD capability needs within the requirements, acquisition, and resources processes.

2.1.2.1 The Contractor shall provide support to the Branch Chief for all activity within the Warfighter Requirements Branch. During the course of the Period of Performance of this contract, the Government expects continued branch involvement in the following on-going efforts:

Capability Portfolio Management Review (CPMR)

Program and budget reviews

Deliberate, Joint Emergent Operational Need (JEON), and Joint Urgent Operational Need (JUON) processes

Capability Gap Assessment (CGA)

Congressional reports and testimony

JCIDS processes

Missile Defense Executive Board processes, including the Operational Forces Standing Committee

Joint IAMD Portfolio Priority List (JIPPL)

Joint Staff IAMD synchronization

Guam Defense System / Defense of Guam

Counter-UAS

Next Generation Interceptor

Glide Phase Interceptor

2.1.2.2 The Contractor shall serve as a subject matter expert in DoD processes pertaining to requirements (including JCIDS and unique missile defense processes), acquisition (including DODD 5000.01 and unique missile defense processes such as DODD 5134.09), and funding (including Programming, Planning, Execution, and Budgeting (PPBE)) and provide advice to the Government based on that expertise.

2.1.2.3 The Contractor shall support identifying, generating, evaluating, developing, refining, and validating IAMD operational requirements. These requirements could arise from a combatant command, military service, or the Missile Defense Agency. Notable efforts which will likely arise during the Period of Performance of this contract are the Defense of Guam, Air and Cruise Missile Defense of the Homeland, the Glide Phase Interceptor, and the Next Generation Interceptor.

2.1.2.4 The Contractor shall support duties related to the JROC, JCB, FCB, and WG, particularly administration of KM/DS, drafting JROC memorandums, coordinating schedule and other logistics with respective secretariats, and reporting to Joint Staff leadership.

2.1.2.5 The Contractor shall support duties related to the JCIDS process, particularly pertaining to the deliberate, Joint Emergent Operational Need (JEON), and Joint Urgent Operational Need (JUON) requirements validation process.

2.1.2.6 The Contractor shall ensure tasks received through formal mechanisms, such as the ETMS system, are executed within suspense and of high quality.

2.1.2.7 The Contractor shall maintain proficiency with associated systems and processes required for formal taskings, such as the ETMS systems.

2.1.2.8 The Contractor shall assist the branch leadership in accounting for all tasks received, including informal ones accepted by the branch leadership.

2.1.2.9 The Contractor shall support identifying, generating, evaluating, developing, refining, and validating CCMD Integrated Priority List (IPL) submissions, Capability Gap Assessment (CGA), and the Joint IAMD Portfolio Priority List (JIPPL).

2.1.2.10 The Contractor shall support evaluating and refining high-level strategic documents, such as the Chairman's Program Assessment (CPA), Chairman's Program Review (CPR), Defense Planning Guidance (DPG), Missile Defense Review (MDR), and National Defense Strategy (NDS).

2.1.2.11 The Contractor shall participate in Department-wide President's Budget Request (PBR) development and provide recommendations to JIAMD Government personnel on matters requiring a Joint Staff position for advocacy.

2.1.2.12 The Contractor shall track progress of items of interest in President's Budget through Congressional authorization and appropriation

processes, as well as congressionally initiated statutory and report requirements affecting IAMD.

2.1.2.13 The Contractor shall assist JIAMD in engagements with Congress, including preparation of requested briefings, review of Reports to Congress, response to Congressional queries, preparation of senior leader testimonies, and development of any preparatory products required by Joint Staff senior leaders.

2.1.2.14 The Contractor shall assist JIAMD in leading CPMRs and maintain flexibility as requirements for the CPMR adapt and evolve. Prior CPMRs include IAMD CPMR 1.0, Defense Against Hypersonic Threats CPMR, Counter-UAS CPMR. CPMRs are considered major analytical tasks.

2.1.2.15 The Contractor shall support preparation of senior leaders talking points at engagements such as the Missile Defense Executive Board (MDEB), the Deputy's Management Action Group (DMAG), the Defense Acquisition Board (DAB), and others.

2.1.2.16 The Contractor shall support administration and leadership of the Operational Forces Standing Committee.

2.1.3 DUTIES SPECIFIC TO THE CAPABILITIES DEVELOPMENT BRANCH

The mission of the Capabilities Development Branch is to promote the development of innovative Joint IAMD capabilities responding to warfighter needs and requirements.

2.1.3.1 The Contractor shall provide support to the Branch Chief for all activity within the Capabilities Development Branch. During the course of the Period of Performance of this contract, the Government expects continued branch involvement in the following on-going efforts:

- International JROC, including the Multinational IAMD Community of Practice
- Non-kinetic missile defeat
- Air and Cruise Missile Defense of the Homelands (ACMDH)
- IAMD operational architecture
- Defense against hypersonics
- Space-based effects
- Cruise missile combat identification
- Electronic warfare
- Passive sensing and detection
- Advanced tactical data links
- Joint integrated fire control

2.1.3.2 The Contractor shall assist the Government in identifying, evaluating, advocating, developing, and transitioning promising emerging technologies and capabilities. Transitioning refers to the operationalization of a capability from the science and technology phase to the operational force and any other effort needed for integration of capabilities into current and future weapon system architectures.

2.1.3.3 The Contractor shall assist with program management duties associated with projects within the branch, including coordination and preparation of funding to other organizations, identifying relevant stakeholders and participants, and organizing logistics including schedule management.

2.1.3.4 The Contractor shall assist the Government in the planning, management, and execution of the classified Homeland Defense project. Further information about Homeland Defense is available upon request at the appropriate security levels. Homeland Defense is considered a major analytical task.

2.1.3.5 The Contractor shall assist the Government in the planning, management, and execution of the classified Cruise Missile Combat Identification project. Further information about Cruise Missile Combat Identification is available upon request at the appropriate security levels. Cruise Missile Combat Identification is considered a major analytical task.

2.1.3.6 The Contractor shall assess existing and emergent IAMD capabilities through evidence provided by studies, simulations, and technology demonstrations. Capabilities under evaluation may come from within or outside the Government, including private industry and international.

2.1.3.7 The Contractor shall support development and evaluation of operational concepts, architectures, analyses, demonstrations, exercises, roadmaps, and assessments of related technologies, operations, requirements, systems and weapons programs. Ongoing efforts which the Government expects to continue during the Period of Performance of this contract include Air and Cruise Missile Defense of the Homelands, the Joint Warfighting Concept, Agile Combat Employment, and concepts within CCMD O-PLANS.

2.1.3.8 The Contractor shall review and participate in research, development, test, and evaluation activities at the engineering level during assessment and evaluation of IAMD capabilities.

2.1.3.9 The Contractor shall assist with duties assigned from the I-JROC. The I-JROC is a US, UK, and Australia tri-lateral forum consisting of the Vice chiefs of defense, such as the VCJCS, to align international efforts for operational warfighting requirements. Duties associated with the I-JROC include coordinating, arranging, and participating in engagements with action officers and general officers from UK and Australia via telephone, virtual teleconference, and in-person.

2.1.3.10 The Contractor shall assist with leadership of the MIC. The MIC is part of the I-JROC dedicated to IAMD, led by the Director of JIAMD.

2.1.3.11 The Contractor shall support requirements processes, identify possible materiel solutions, and support analytical efforts related to joint integrated fire control.

2.1.4 DUTIES SPECIFIC TO THE CAPABILITIES ASSESSMENT BRANCH

The mission of the Capabilities Assessment Branch is to assess existing and emergent IAMD capabilities through studies, simulations, and technology demonstrations.

2.1.4.1 The Contractor shall provide support to the Branch Chief for all activity within the Capabilities Assessment Branch. During the course of the Period of Performance of this contract, the Government expects continued branch involvement in the following on-going efforts:

Nimble Fire operator-in-the-loop exercises
Nimble Fire multi-domain integration
JRICM

2.1.4.2 The Contractor shall assist the Government in the planning, management, and execution of Nimble Fire. Nimble Fire is a series of live, virtual, and constructed simulation exercise using an operator-in-the-loop and operates within a unique security portfolio. Nimble Fire is considered a major analytical task.

2.1.4.3 The Contractor shall assist with program management duties associated with Nimble Fire, including coordination and preparation of funding to other organizations, identifying relevant stakeholders and participants, and organizing logistics including travel and schedule management.

2.1.4.4 The Contractor shall assist the Government with compliance with all security directives, policies, and procedures of Nimble Fire's unique security portfolio.

2.1.4.5 The Contractor shall execute the Government's vision in coordination with Nimble Fire execution partners in the planning and execution of two (2) events per year. Nimble Fire execution partners consist of over 200 military planners, program managers, engineers, operators, and requirements officers across the Department of Defense.

2.1.4.6 The Contractor shall coordinate with Nimble Fire execution partners to host Distinguished Visitor Days and Capstone Days appropriate for multiple 4-star level attendees.

2.1.4.7 The Contractor shall act as a liaison between JIAMD and the combatant commands supported by Nimble Fire events as directed by the Government Nimble Fire lead.

2.1.4.8 The Contractor shall act as liaisons between JIAMD and the military services and Missile Defense Agency supporting Nimble Fire events as directed by the government Nimble Fire lead.

2.1.4.9 The Contractor shall assist the Government in the planning, management, and execution of JRICM. JRICM is a series of studies leveraging collective modeling and simulation across multiple DoD and intelligence community stakeholders within a unique security portfolio. JRICM is considered a major analytical task.

2.1.4.10 The Contractor shall assist with program management duties associated with JRICM, including coordination and preparation of funding to other organizations, and identifying relevant stakeholders and participants.

2.1.4.11 The Contractor shall assist the Government with compliance with all security directives, policies, and procedures of JRICM's unique security portfolio.

2.1.4.12 The Contractor shall assist in the development of threat models, with the intent for use in Nimble Fire and JRICM simulations, based on intelligence community projection of threat capabilities currently and in the future.

2.1.4.13 The Contractor shall support Nimble Fire Multi-Domain Improvements (MDI). Nimble Fire MDI is the effort to incorporate greater analytical capability within the Nimble Fire simulation exercises so that JIAMD may study Joint Force impacts when domains such as space and cyber are included. Nimble Fire MDI requires a change to the security environment and, possibly, physical environment in which Nimble Fire exercises occur. Nimble Fire MDI is considered a major analytical task.

2.1.4.14 The Contractor shall support any market research, requests for information, broad agency announcements, requirements development, solicitation preparation, proposal reviews, or other acquisition work related to Nimble Fire MDI.

2.1.4.15 The Contractor shall support planning and oversight of facility improvements at the venue hosting Nimble Fire simulation exercises in order to incorporate Nimble Fire MDI.

2.1.4.16 The Contractor shall support reviews of any other modeling and simulations, exercises and demonstrations, and data analysis from other organizations in order to evaluate emerging IAMD systems and enabling technologies.

2.2 MANAGEMENT

2.2.1 SCHEDULE

2.2.1.1 The Contractor shall schedule and conduct a joint Government and Contractor kick-off meeting to review PWS requirements within ten (10) days after contract award.

2.2.1.2 The Contractor shall conduct a phase-in period to minimize any decreases in productivity and to prevent possible negative impacts on additional services and have personnel on board on the first day of the Period of Performance. Contractor phase-in tasks shall include ensuring that personnel, fully trained and qualified to perform the requirements set forth in the PWS, are on hand and available to begin work on the first day of task order performance.

2.2.1.3 The Contractor shall provide monthly deliverables no later than the 15th of the following month.

2.2.1.4 The Contractor shall ensure the Government is aware of daily duty status, either through verbal or electronic communication. Duty status can be projected forward in time.

2.2.1.5 The Contractor shall provide products, information, or deliverables to the Government in a timely manner, as determined by branch chiefs and JIAMDO leadership. Timelines for task completion may not always be within the control of the JIAMDO leadership.

2.2.1.6 The Contractor shall provide and execute a phase-out plan to the Government no later than 45 days before contract expiration if the Contractor is not awarded the follow-on contract to continue providing support after the Period of Performance.

2.2.2 COST MANAGEMENT

2.2.2.1 The Contractor shall monitor all funds distributed by the Government to the Contractor and provide advice on funding strategies.

2.2.2.2 The Contractor shall process and execute funds, including to any subcontractors, in a timely manner and provide invoicing on a monthly basis.

2.2.2.3 The Contractor shall update billings within 60 days for final indirect cost rates (after DCAA completes an audit and the contractor knows the actual indirect rates for the year) and 120 days to submit a completion invoice after the contract ends, in accordance with FAR 52.216-7.

2.2.2.4 The Contractor shall project funding requirements through the end of the Period of Performance and advise the Government on execution planning for Government spending per fiscal year.

2.2.2.5 The Contractor shall ensure the Government is apprised of anticipated shortages of funds in a timely manner that allows appropriate Government action.

2.2.3 QUALITY

2.2.3.1 The Contractor shall deliver a Quality Control Program (QCP) within ten (10) calendar days after contract award. The QCP must include the framework and processes for delivering quality products and services to the Government.

2.2.3.2 The Contractor shall provide a briefing to the Government outlining the plan for implementation of the QCP for the contract tasks during the kick-off meeting.

2.2.3.3 The Contractor shall ensure all work will be performed in accordance with the contract requirements and the quality control plan.

2.2.4 REPORTING

2.2.4.1 The Contractor shall maintain an active file of all contract deliverables in one location accessible to the COR and TA for surveillance purposes.

2.2.4.2 The Contractor shall provide monthly deliverables electronically, in a format to be agreed upon by the Contractor and the COR.

2.2.4.3 The Contractor shall provide other deliverables in a format and means to be agreed upon by the Contractor and branch lead.

2.2.4.4 The Contractor shall not own or withhold any data rights or intellectual property for work performed under this Contract.

2.2.4.5 The Contractor shall provide the COR with a Monthly Status Report (MSR) no later than the 15th business day of the month. The MSR must identify all work performed for the previous month, including a breakdown of personnel and tasks, tasks to be completed in the future, and any issues or concerns. Major issues or concerns should be emphasized clearly.

2.2.4.6 The Contractor shall deliver a monthly cost report to the COR. The reporting must include the planned funds execution, actual funds execution, projected future execution, and any anticipated shortages. The reporting data must include monthly and cumulative summaries of labor, travel, and Other Direct Costs. The labor summary shall include hours authorized, monthly and cumulative hours expended, hours remaining, billing rate, and monthly and cumulative labor costs expended for each Contractor employee. The travel summary must include traveler name, destination, travel dates and total travel funding authorized, expended, and remaining. The monthly cost report shall include the identity of any known risk and provide an estimate of the burn rate for the effort. The format of the MSR shall be an agreed upon format between the COR and the Contractor Program Manager.

2.2.5 PERSONNEL MANAGEMENT

2.2.5.1 The Contractor shall lead and manage efforts to recruit, retain, disciple, or terminate Contractor employees.

2.2.5.2 The Contractor shall be prepared to execute reductions or augmentations in staff if the needs of the Government or resources provided to JIAMDO change.

2.2.5.3 The Contractor shall deliver a Standard Operating Procedure document to the COR within 10 days after award with in-processing procedures for all contracted personnel under this contract. The SOP must include:

The procedure the Contractor shall use for completing the Pre-Arrival Requirements Checklist form provided by the Government.
The procedure the Contractor shall use for getting new employees to complete the Cyber Awareness training, complete the SAAR Form for Network Access (both SIPR and NIPR), sign the JSP/AUP User Agreement, sign the required NATO Briefing form, and any other initial requirements for in processing.

The procedure the Contractor shall use for checking in new contracted employees on their first day of work at the Pentagon.
The procedure the Contractor shall use for completing the Joint Staff Contractor In-processing Checklist for each new employee.
Any other in-processing procedures the Contractor deems necessary for new employees.

2.2.5.4 The Contractor shall control, direct, and supervise Contractor employees performing services under this contract at all times by management personnel of the Contractor.

2.2.5.5 The Contractor shall ensure that Contractor employees properly comply with the performance standards outlined in this Performance Work Statement as determined by the Contracting Officer or the COR.

2.2.5.6 Contractor employees shall perform independent of and without the supervision of any Government official when necessary.

2.2.5.7 The Contractor shall recognize that actions of contractor employees may not be interpreted or implemented in any manner that results in any contractor employee creating or modifying Federal policy, obligating the appropriated funds of the U.S. Government, overseeing the work of Federal employees, providing direct personal services to any Federal employee or otherwise violating the prohibitions set forth in Parts 7.5 and 37.1 of the Federal Acquisition Regulation (FAR).

2.2.5.8 The Contractor shall return all badges and access obtained as a result of performance under the contract. This includes when a Contractor employee ceases employment with the Contractor and when the Period of Performance ends.

2.2.6 PERFORMANCE EVALUATIONS

The Government will evaluate Contractor performance by annually reporting via the Contractor Performance Assessment Reporting System (CPARS). The CPARS is a report of the performance during a period against the contract requirements. CPARS documents the following aspects of the Contractor's performance: conformance to contracting requirements; forecasting and controlling costs; adherence to contract schedules, including the administrative aspects of performance; and standards/history of good workmanship and commitment to customer satisfaction.

2.2.6.1 The Contractor shall convene with the COR, Contracting Officer, and other Government personnel as appropriate at least annually to review the Contractor's performance. Meetings can be conducted in person or virtually, through video teleconference, telephone, or by email.

2.2.6.2 The Contractor shall respond to Government feedback on how the Government views the Contractor's performance.

2.2.6.3 The Contractor shall apprise the Government of problems, if any, experienced during contract execution which prohibit satisfactory completion of tasks within this PWS.

2.2.6.4 The Contractor shall support the Government in taking appropriate action to resolve outstanding issues.

2.2.6.5 The Contractor Program Manager shall have daily or weekly interaction with the COR to ensure satisfactory progress in accordance with this PWS.

3.0 GENERAL INFORMATION

3.1 GOVERNMENT PROPERTY (GP)

Government Property is all property owned by the Government, including Government Furnished Property and Contractor acquired property (FAR 45.101(a)).

Government Furnished Property is property in the possession of or directly acquired by the Government and provided to a Contractor for contract performance (FAR 45.101(a)).

Contractor Acquired Property is property acquired, fabricated, or otherwise provided by the Contractor for Contract performance and to which the government has title (FAR 45.101(a)).

Contractor Inventory is excess Contractor acquired property, Government furnished property, and any property the Government is obligated to take or has the option to take (FAR 45.101(a)).

3.2 GOVERNMENT FURNISHED EQUIPMENT AND SERVICES

3.2.1 INFORMATION

The Government will provide the Contractor access to the information and information systems required to perform the tasks in this PWS and facilitate the interface of contractor personnel with other Joint Staff offices as required completing this effort.

3.2.2 SERVICES

All utilities in the Government's facility will be available for the contractor's use in performance of duties outlined in this PWS.

3.2.2.1 The Contractor shall instruct employees in utilities conservation practices.

3.2.2.2 The Contractor shall be responsible for operating under conditions that preclude the waste of utilities.

3.2.3 FACILITIES

The Government will furnish the necessary workspace within the Pentagon to provide the support outlined in this PWS to include desk space, telephones, computers and other items necessary to maintain an office environment.

3.2.3.1 The Contractor Program Manager shall, at a minimum, visit the Government workspace monthly and communicate with the COR regarding contract performance, however Contractor Program Manager shall not be required to reside within government workspace.

3.2.3.2 The Contractor Program Manager shall be accessible via phone or email.

3.3 IDENTIFICATION OF CONTRACTOR EMPLOYEES

3.3.1.1 Contractor personnel shall identify themselves as such to avoid creating an impression in the minds of the audience that they are Government employees attending meetings, answering Government telephones, and working in other situations where their contractor status is not obvious to third parties.

3.3.1.2 Contractor personnel shall be required to obtain and wear Pentagon identification badges in accordance with Pentagon Force Protection Agency policy.

3.4 DELIVERABLES

3.4.1.1 The Contractor shall recognize that all deliverables become the property of the United States Government.

3.4.1.2 The Contractor shall submit all deliverables in hardcopy and/or electronic media in Microsoft Word/PowerPoint/Excel/Access/Visio format unless otherwise stated.

3.4.1.3 The Contractor shall submit deliverables in this PWS to the Government via the COR or the branch chief.

3.5 TRAINING REQUIREMENTS

3.5.1.1 Contractor personnel shall adhere to Joint Staff training requirements, including required online training via the Joint Knowledge Online (JKO) training system.

3.5.1.2 Contractor personnel shall complete all required JKO training within six (6) months of their initial employment date.

3.6 ACCESS TO PLANNING, PROGRAMMING, BUDGET, AND EXECUTION (PPB&E) PROCESS INFORMATION

The below restrictions apply not only to information from FYDP (Future Years Defense Program) documents, published or unpublished, and the FYDP database, but also to other related program and budget data produced and maintained by DOD organizations. Contractors will remain bound by this agreement beyond the term of this contract but may be terminated in writing and will only be self-terminated upon 30 September of the Fiscal year upon which data on the specific Future Years divulged has passed. Termination does not authorize the release of classified, proprietary, or deliberative process information protection from release by other authority.

3.6.1.1 The Contractor shall not divulge Planning, Programming, Budgeting and Execution (PPB&E) information made available to any other party, individual or corporation.

3.6.1.2 Contractors shall not divulge any PPB&E information made available to anyone, including any other member or supervisor of contractor's company, without specific authorization (non-disclosure agreement) from the Government Contracting Officer or their duly appointed representatives.

3.6.1.3 For contractors that are provided access to Planning, Programming, Budgeting, and Execution (PPB&E) information, Non-Disclosure Agreements shall be prepared using the wording and format in Section 14.1.

4.0 TRAVEL AND OTHER DIRECT COSTS (ODCs)

Travel and ODCs for the base period and then each option period will be funded incrementally to meet mission requirements. The amounts will be not exceeding the Not-to-Exceed (NTE) amounts provided by the Government.

4.1 TRAVEL

Performance under this contract may require travel by contractor personnel. Travel performed for personal convenience and daily travel to and from work at contractor's primary place of performance (including parking) will not be reimbursed.

Costs for transportation shall be based upon mileage rates, actual costs incurred, or a combination thereof, provided the method used results in a reasonable charge. Travel costs will be considered reasonable and allowable only to the extent that they do not exceed on a daily basis, the maximum per diem rates in effect at the time of the travel. The Joint Federal Travel Regulations (JFTR), while not wholly applicable to contractors, provide the basis for the determination as to reasonable and allowable. Maximum use is to be made of the lowest available customary standard coach or equivalent airfare accommodations available during normal business hours. Using Government funds to pay for premium travel (including first and business class) is not allowable unless specifically authorized. Exceptions for the use of premium travel shall be approved in writing by the COR prior to travel.

The Government estimates the following annual travel requirement by location / duration / number of trips:

St. Louis MO /4-5 Days /200 trips

Colorado Springs CO / 4 Days / 15 trips
Huntsville AL / 4 Days / 8 trips
Honolulu HI / 7 Days / 6 trips
Las Vegas NV / 4 Days / 2 trips
Hanscom AFB MA / 4 Days / 6 trips
Norfolk VA / 4 Days / 4 trips
Stuttgart GE / 5 Days / 4 trips

4.1.1 APPROVAL AND EXECUTION

4.1.1.1 The Contractor shall ensure all travel required for tasks assigned under this contract are conducted in accordance with rules set forth for temporary duty travel in FAR 31.205-46, "Travel Costs and the Joint Travel Regulations (JTR)."

4.1.1.2 The Contractor shall gain approval to travel for each traveler from the COR prior to incurring any costs. Travel costs that have not been approved in advance may not be paid by the Government.

4.1.1.3 The Contractor shall submit a Travel Approval Request (TAR), in a format to be agreed upon by the COR and Contractor Program Manager, no later than ten (10) calendar days prior to the proposed travel start date that includes the following information:

Traveler name
Company affiliate
Contract number
Origin of travel
Travel start date
Destination of travel
Travel completion date
Estimated Cost, itemized per transportation, lodging, per diem, rental care, hotel tax, and other
Any Government support requested
Purpose of travel

4.1.1.4 The Contractor shall make all needed travel arrangements for personnel. This includes but is not limited to medical examinations, immunizations, passports, visas, security clearances, etc. All contractor personnel required to perform work on any U.S. Navy vessel will have to obtain boarding authorization from the Commanding Officer of the vessel prior to boarding.

4.1.1.5 The Contractor shall travel as specified in each individual task and execute duties in accordance with the travel's purpose.

4.1.1.6 The Contractor shall prepare a trip report for the Branch Chief and COR no later than ten (10) business days following the conclusion of the trip, providing actual costs, and a description of activities conducted on the trip.

4.1.2 REIMBURSEMENT

The Government will reimburse the contractor for allowable travel costs incurred by the contractor in performance of the contract and determined to be in accordance with FAR subpart 31.2, subject to the rules set forth for temporary duty travel in FAR 31.205-46.

Travel, subsistence, and associated labor charges for travel time are authorized, whenever a task assignment requires work to be accomplished at a temporary alternate worksite.

Travel performed for personal convenience and daily travel to and from work at contractor's facility will not be reimbursed.

Per diem for travel on work assigned under this contract will be reimbursed to employees consistent with company policy, but not to exceed the amount authorized in the Department of Defense Joint Travel Regulations.

Whenever work assignments require temporary duty aboard a Government ship, the contractor will be reimbursed at the per diem rates identified in paragraphs C8101.2C or C81181.3B(6) of the DOD Joint Travel Regulations, Volume 2.

In rendering the services, the contractor shall be reimbursed for the actual costs of transportation incurred by its personnel not to exceed the cost of tourist class rail, or plane fare, to the extent that such transportation is necessary for the performance of the services hereunder and is authorized by the Ordering Officer. Such authorization by the Ordering Officer shall be indicated in the order or in some other suitable written form. To the maximum extent practicable without the impairment of the effectiveness of the mission, transportation shall be tourist class. In the event that only first-class travel is available, it will be allowed, provided justification therefore is fully documented and warranted.

The use of privately owned conveyance within the continental United States by the traveler will be reimbursed to the contractor at the mileage rate allowed by Joint Travel Regulations. Authorization for the use of privately owned conveyance shall be indicated on the order. Distances traveled between points shall be shown in standard highway mileage guides. Any deviations from distance shown in such standard mileage guides shall be explained by the traveler on his expense sheet.

The contractor shall be entitled to reimbursement for car rental, exclusive of mileage charges, as authorized by each order, when the services are required to be performed outside the normal commuting distance from the contractor's facilities. Car rental for multiple travelers will be limited to a rate of one car for every four (4) persons on travel at one site.

4.2 OTHER DIRECT COSTS (ODCs)

4.2.1.1 The Contractor shall acquire items for use as Government Furnished Property or as Contractor Acquired Property on a case-by-case basis as ODCs.

4.2.1.2 The Contractor shall gain Government approval via the COR prior to incurring any ODCs exceeding \$20,000.00 on ODC funding.

5.0 TECHNICAL DATA AND SOFTWARE RIGHTS

5.1 DATA RIGHTS

Commercial data refers to data that is customarily provided to the public or that has been developed at private expense. Non-commercial data refers to data that is not customarily provided to the public or that has not been developed at private expense.

5.1.1.1 The Contractor shall provide the government with unlimited rights to use, modify, reproduce, release, perform, display, or disclose commercial and non-commercial data delivered under the contract.

5.1.1.2 The Contractor shall mark all commercial and non-commercial data deliverables with appropriate data rights legends in accordance with DFARS 252.227-7013.

5.1.1.3 The Contractor shall comply with all data rights clauses included in the contract, including DFARS 252.227-7013 and any additional clauses specific to data rights. Any deviations from the specified data rights requirements must be approved in writing by the Contracting Officer Representative.

6.0 SECURITY REQUIREMENTS

The requirement to support joint and coalition analysis (including NATO) at levels up to TS/SAP/SAR/SCI, and ACCM control measures apply to all tasks.

6.1 GENERAL

6.1.1.1 The Contractor shall meet the security requirements as provided in the DD Form 254.

6.2 PERSONNEL

6.2.1.1 All Contractor personnel performing work on this contract shall possess a current Top Secret security clearance as determined by the Joint Staff Security Office (JSSO) with SCI eligibility.

6.2.1.2 The Contractor shall be responsible for obtaining all necessary security clearances in accordance with Part 117 of Title 32, Code of Federal Regulations., "National Industrial Security Program Manual" (NISPOM).

6.2.1.3 Contractor personnel approved for clearance to SCI or Special Access Programs shall sign the appropriate Government non-disclosure statement prior to beginning work.

6.2.1.4 Contractor personnel approved for clearance to SCI or Special Access Programs shall willing to submit to an initial and random counterintelligence polygraph at the Government's expense.

6.2.1.5 Contractor personnel shall be required to obtain and maintain security badges and to adhere to Government security requirements.

6.3 FACILITY CLEARANCE

6.3.1.1 If the Government authorizes classified work at a location other than the Primary Place of Performance, the Contractor shall possess or be eligible to receive and maintain a Top Secret (TS) facility clearance from the Defense Security Service as verified in the Industrial Security Facility Database at time of quote submission.

6.3.1.2 The level of safeguarding for classified information/ material required at the Contractor facility is Secret.

6.4 PHYSICAL SECURITY

6.4.1 SAFEGUARDING

6.4.1.1 The Contractor shall be responsible for safeguarding all Government information or property provided for contractor use. This requirement includes securing Government information, facilities, equipment, and materials at the close of each work period.

6.4.2 LOCK COMBINATIONS

6.4.2.1 The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons.

6.4.2.2 The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations.

6.5 CYBERSECURITY/INFORMATION TECHNOLOGY (IT)

6.5.1 TRAINING

6.5.1.1 All contractor personnel shall complete the DoD Cybersecurity awareness training before issuance of network access and annually thereafter.

6.5.2 COMMON ACCESS CARD (CAC)

6.5.2.1 All Contractor personnel shall obtain a favorably adjudicated National Agency Check with Inquiries (NACI) or an equivalent or higher investigation in accordance with Army Directive 2014-05 before CAC issuance. The Government will issue a CAC only if duties involve one of the following: (1) Both physical access to a DoD facility and access, via logon, to DoD networks on-site or remotely; (2) Remote access, via logon, to a DoD network using DoD-approved remote access procedures; or (3) Physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. At the discretion of the sponsoring activity, an initial CAC may be issued based on a favorable review of the FBI fingerprint check and a successfully scheduled NACI at the Office of Personnel Management.

6.5.3 ACCESS TO GOVERNMENT SYSTEMS

In accordance with DODI 8500.01, access to all DoD information systems shall be based on a demonstrated need to know and granted in accordance with applicable laws and DODM 5200.2 for background investigations, special access and IT position designations and requirements. Contractors are not allowed access to any DoD system without explicit authorization of a relevant Government official.

6.5.3.1 Contractor personnel shall have the appropriate clearance for access to a particular system.

6.6 NEGLIGENT DISCHARGE OF CLASSIFIED INFORMATION (NDCI).

When information is placed on or processed on an information system with insufficient security controls to appropriately protect it (e.g., classified data on an unclassified system) there is a potential for unauthorized disclosure. Such actions will be classified as a security violation, specifically a negligent discharge of classified information or NDCI.

6.6.1.1 Contractors that cause NDCIs during the course of the Period of Performance of this contract shall be financially liable for all actual accumulated restoration costs incurred, as described below, but not less than \$5,000 per incident. Such costs will be deducted from the contract price and are not reimbursable. This clause shall not preclude the use of any other remedies available to the government, both contractual or otherwise.

a. Restoration costs above \$5,000 will be itemized. DISA has developed a Classified Message Incident Standard Operating Procedures (SOP) that will be followed in the event of an NDCI by contractor personnel. Personally Identifiable Information (PII) incidents fall under this category. This is not an exclusive remedy (e.g., in the case of PII spillage, identity theft or other insurance may be needed to protect the individuals).

b. NDCI Cleanup actions may include the following actions:

- i. Server destruction
- ii. Hard drive wipe and destruction
- iii. Containment actions

7.0 HOURS OF WORK

Joint Staff policy considers normal business hours as core hours of 0900-1400, flexible hours of 0600-1800, and core days of Tuesday, Wednesday, and Thursday. Work within the continental limits of the United States and its possessions should not normally exceed eight (8) hours per day or forty (40) hours per normal work week. Work hours OCONUS shall correspond to hours worked by comparable Government personnel. The contractor work week is forty (40) hours.

The Government observes the following days as federal holidays:

New Year's Day
Martin Luther King, Jr. Day
Presidents' Day
Memorial Day
Juneteenth
Independence Day
Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

In addition to the days designated as federal holidays, the Government may also observe any day designated by Federal Statute, Executive Order, or Presidents Proclamation.

7.1.1.1 The Contractor shall perform on-site work during normal business hours except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings.

7.1.1.2 The Contractor shall consider workforce stability and continuity as essential factors when hiring personnel.

7.1.1.3 Contractors shall obtain authorization from the COR prior to incurring any hours in excess of the contractor work week in accordance with the

task order.

7.1.1.4 Contractor personnel performing at a Government site shall observe federal holidays and other days identified in this section unless otherwise indicated in a task order.

8.0 PLACE OF PERFORMANCE:

On-site support is defined as the execution of the duties in this PWS at the primary Place of Performance. The primary place of performance for this effort is the Pentagon, Washington D.C., unless otherwise approved by the COR.

Off-site support is defined as telework or remote work as defined by Joint Staff Instruction (JSI) 1035.01. The Government anticipates that tasks supporting Nimble Fire will require some personnel to perform off-site support. Temporary duty, travel, or local temporary duty is not considered off-site support. The Government, via the COR, retains the right to revoke or revise an individual's off-site support agreement at any time.

Contractor personnel commuting and parking costs for their normally assigned location will not be reimbursable.

8.1.1.1 The Contractor shall provide on-site support at the primary Place of Performance, depending on the requirements of the individual task section, unless approved by the COR.

8.1.1.2 The Contractor shall support personnel participation in off-site support agreements.

8.1.1.3 The Contractor shall sign an off-site support agreement prior to commencing telework or remote work, which shall include the terms and conditions of off-site support, including but not limited to:

- Days and hours of off-site support
- Location of off-site support
- Expectations for communication and availability
- Security and confidentiality requirements
- Any necessary equipment and software, including whether any equipment must be supported by the Government

8.1.1.4 The Contractor shall ensure that their off-site support work environment is secure, private, and free from distractions, and that all work is performed in a professional and quiet environment.

8.1.1.5 The Contractor shall be available and responsive to phone calls, emails, and other electronic communications during core hours as defined by Section 7.0 and shall participate in virtual meetings and collaborative activities as required.

8.1.1.6 The Contractor shall ensure that all data and information accessed or used during off-site support work is properly secured and protected, and that all confidentiality and non-disclosure agreements are adhered.

8.1.1.7 The Contractor shall use only authorized equipment and software during off-site support work

8.1.1.8 The Contractor shall ensure that all equipment and software used for off-site support work is compatible with Government systems and meets all security requirements.

8.1.1.9 The Contractor shall maintain accurate and detailed records of all time worked, including hours worked, tasks performed, and any challenges or issues encountered during off-site support work.

8.1.1.10 The Contractor shall create one appendix the MSR for each individual executing off-site support. Each appendix must include a weekly breakdown of work performed for the previous month.

8.1.1.11 The Contractor shall be subject to regular performance monitoring and evaluations, which may include virtual check-ins, progress reports, and other assessments to ensure that work is being performed satisfactorily.

8.1.1.12 The Contractor shall comply with all applicable cybersecurity requirements, including but not limited to:

- Using strong passwords and multi-factor authentication
- Keeping software and operating systems up-to-date
- Using authorized virtual private network (VPN) connections
- Reporting all cybersecurity incidents or suspected incidents to the COR

9.0 PERIOD OF PERFORMANCE:

The contract will have one (1) base performance period consisting of 10 months (24 August 2026-23 June 2027), with four (4) subsequent 12-month option periods.

Section 2.2 contains tasks pertaining to phase-in and phase-out of the Period of Performance in order to minimize any decreases in productivity and to prevent possible negative impacts on additional services.

10.0 DELIVERABLES

--

<u>Deliverable PWS Paragraph Transmittal Form and Quantity Schedule</u>
ETMS Staff Actions 2.1 Electronic within the ETMS system In accordance with the assigned ETMS action
Initial Task Assignment Review 2.1 As determined by Branch Chief Within timeline specified by the Branch Chief
Interim / In-Progress Reviews 2.1 As determined by Branch Chief Within timeline specified by the Branch Chief
Project/Task Schedule 2.1 Electronic or paper copy as directed Monthly
Final Reports and Reviews 2.1 As determined by Branch Chief Within timeline specified by the Branch Chief
Arrange/Lead/Conduct Meetings/Briefings 2.1 As determined by Branch Chief Upon Government request
Meeting Executive Summary (EXSUM) 2.1 Electronic Upon Government request
Talking Points 2.1 Electronic or paper copy as directed Upon Government request
Kick-off Meeting Briefing 2.2.1 Electronic or paper copy as directed Within 10 days after task order award
Quality Control Plan 2.2.3 Electronic Within 10 calendar days after task order award
Monthly Status Report (MSR) 2.2.4 Electronic - Monthly (15th business day of the month)
Monthly Cost Report 2.2.4 Electronic - Monthly (15th business day of the month)
File of Contract Deliverables 2.2.4 Electronic Checked for currency monthly
On-Boarding/Off-Boarding SOP 2.2.5 Electronic Within 10 calendar days after contract award
Trip Reports 4.1.1 Electronic Within 10 working days after travel completion

11.0 MANPOWER REQUIREMENT

11.1 ON-BOARDING AND OFF-BOARDING

11.1.1.1 The Contractor shall develop in-processing procedures, subject to Government review and control, for all contracted personnel under this contract, documented in a Standard Operating Procedure, and provided to the COR within 10 days after award. At a minimum, the SOP includes procedures for the following:

Completion of the Pre-Arrival Requirements Checklist form provided by the Government
 Completion of Cyber Awareness training;
 Completion of the SAAR Form for Network Access (both SIPR and NIPR);
 Signature of the JSP/AUP User Agreement;
 Signature of the required NATO Briefing form;
 Checking in new contracted employees on their first day of work at the Pentagon.
 Completion of the Joint Staff Contractor In-processing Checklist for each new employee.
 Any other in-processing procedures the Contractor deems necessary for new employees.

11.2 LABOR CATEGORY

The labor categories specified below are considered essential to the work being performed under this contract. Before removing, replacing, or

diverting any personnel, the Contractor shall notify the COR, in writing. The Contractor shall submit information to support the proposed action to enable the COR to evaluate qualifications and ensure the proposed candidate meets the PWS requirements. The COR may grant an exception to the position requirements below depending on the qualification information provided by the Contractor. The Contractor shall not remove or replace personnel until the COR approves the change in writing.

In accordance with the requirements in Section 2.0, all positions will be responsible for General Duties, such as preparing and presenting high-level Government briefings and presentations, as well as duties specific to individual branches.

11.2.1 PROGRAM MANAGER

The Program Manager shall be responsible for organizing, directing, coordinating, planning, and the production of all contract activities including interfacing with client management such as the COR and TA. In particular, the Program Manager shall be responsible for the tasks in Section 2.2. The Program Manager shall be responsible for assigning, scheduling, and providing configuration control and quality assurance of deliverables and establishing and altering program organization to provide effective contract support. The Program Manager shall be responsible for ensuring conformance to task specifications and contract provisions.

This position requires a Master's degree in a technical or management discipline with at least fifteen (15) years of professional experience, including ten (10) years managing complex DoD projects involving a large number of people in subordinate groups. Security clearance: Active TS.

11.2.2 DEPUTY PROGRAM MANAGER

The Deputy Program Manager shall support the Program Manager in the responsibilities for organizing, directing, coordinating, planning, and the production of all contract activities including interfacing with client management such as the COR and TA. In particular, the Deputy Program Manager shall be responsible for the tasks in Section 2.2. The Deputy Program Manager support the Program Manager in the responsibilities for assigning, scheduling, and providing configuration control and quality assurance of project team deliverables; and establishing and altering program organization to provide effective contract support. The Deputy Program Manager shall support the Program Manager in the responsibilities for ensuring conformance to task specifications and contract provisions. The Deputy Program Manager shall represent the Program Manager to the Government as needed by the Program Manager.

This position requires a Master's degree in a technical or management discipline with at least fifteen (15) years of professional experience, including ten (10) years managing complex DoD projects involving a large number of people in subordinate groups. Security clearance: Active TS.

11.2.3 PROJECT MANAGER

The Project Manager will support the relevant branch chief to organize, coordinate, plan, and execute activities which support major analytical tasks as described in Section 2.1.1. The Project Manager shall be responsible for assigning, scheduling, and providing configuration control and quality assurance of deliverables; and, establishing and altering project organization to provide effective support to major analytical tasks. The Project Manager shall be responsible for ensuring conformance to task specifications and major analytical task provisions.

At a senior level, this position requires a Master's degree in a technical or management discipline with at least fifteen (15) years of professional experience, including ten (10) years managing complex DoD projects involving a large number of people in subordinate groups. Security clearance: Active TS, SCI, and SAP eligible.

At a non-senior level, this position requires a Bachelor's degree in a technical or management discipline with at least ten (10) years of professional experience, including five (5) years managing complex DoD projects involving a large number of people in subordinate groups. Security clearance: Active TS, SCI, and SAP eligible.

11.2.4 SECURITY SPECIALIST

The Security Specialist(s) will support all of JIAMDO and be responsible for implementing DoD security administration, including the requirements listed in Section 6.0 which requires understanding and executing NISPOM and JAFAN processes and leading compliance efforts throughout JIAMDO and any supporting or supported organizations. This position will be responsible for implementing all security policies and protocols up to and including those for SCI and SAP.

At a senior level, this position requires a Bachelor's degree with at least ten (10) years of professional experience within DoD security administration, a minimum of three (3) of which include at the SCI and SAP level. Security clearance: Active TS, SCI and SAP eligible.

At a non-senior level, this position requires a Bachelor's degree with at least three (3) years of professional experience within DoD security administration. Security clearance: Active TS, SCI and SAP eligible.

11.2.5 FUNCTIONAL AND ADMINISTRATIVE SUPPORT

The Functional and Administrative Support professional(s) will be responsible for ensuring seamless operation of engagements which require many stakeholders from various organizations within and outside the DoD. These engagements regularly include the Nimble Fire events, JCIDS boards, and senior leader engagements.

This position requires a Bachelor's degree with at least five (5) years of professional experience supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.6 FINANCIAL MANAGEMENT SUPPORT

The Financial Management Support professional will support all of JIAMD and will be responsible for financial analysis and technical support. This position requires interaction with the Project Managers, Joint Staff Comptroller Office, J8 Chief of the Resource Acquisition and Management Office (RAMO), Air Force Financial Services Accounting Liaison Office (ALO), Defense Finance and Accounting Service (DFAS) operating locations, Office of the Secretary of Defense (OSD), Washington Headquarter Services (WHS), and various organizations that routinely conduct financial transactions with JIAMD.

This position requires a Bachelor's degree in Business Accounting, Business Administration, Finance or a related field with at least five (5) years of professional experience, preferably in Accounting and Government Comptroller functions within the DoD.

11.2.7 REQUIREMENTS ANALYST

The Requirements Analyst(s) will primarily support the Warfighter Requirements Branch Chief and be responsible for collecting inputs throughout the IAMD enterprise and using them to support various processes for senior leader decision-making. This position requires familiarity with the Joint Staff and subject matter pertaining to the requirements in Section 2.1.2.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.8 PLANNING, PROGRAMMING, BUDGET, AND EXECUTION (PPBE) ANALYST

The PPBE Analyst(s) will primarily support the Warfighter Requirements Branch and be responsible for understanding and interpreting PPBE-related issues, concerns, and decisions as related to IAMD and capability-based planning. This position requires familiarity with the Joint Staff and subject matter pertaining to the requirements in Section 2.1.2.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.9 TECHNICAL ANALYST

The Technical Analyst(s) will primarily support the Capabilities Development Branch and be responsible for understanding and interpreting advanced technical capabilities, requirements, systems and concepts related to IAMD. This position will be responsible for providing subject matter expertise for areas supporting the efforts listed in Section 2.1.3.1.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.10 OPERATIONAL CONCEPT ANALYST

The Operational Concept Analyst(s) will primarily support the Capabilities Development Branch and be responsible for understanding and interpreting the technical and operational basis of Joint IAMD including understanding Joint employment concepts, operational requirements, and doctrine for conducting active IAMD. This position will be responsible for performing architecture analysis in the IAMD domain in coordination with other DoD organizations, other federal government organization, and international allies and partners. This position will be responsible for understanding, interpreting, and coordinating DoD architecture policies, framework, and management.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.11 SYSTEMS ENGINEER

The Systems Engineer(s) will primarily support the Capabilities Assessment Branch and be responsible for performing system engineering in the IAMD domain in coordination with architecture analysis efforts. This position will be responsible for modeling and simulation of operational concepts and associated data analysis. This position will be responsible for oversight and development of integrated simulation tools to conduct wargaming to support IAMD analysis within Nimble Fire and JRICM applications. This position will be responsible for identification of IAMD objectives, methodologies, MOEs and MOPs, and algorithm development using tools such as EADSIM and WILMA.

At a senior level, this position requires a Master's degree with at least fifteen (15) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

At a non-senior level, this position requires a Bachelor's degree with at least five (5) years of professional experience within IAMD or a related area, a minimum of three (3) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.12 CAPABILITY ANALYST

The Capability Analyst(s) will primarily support the Capabilities Assessment Branch and be responsible for understanding, interpreting, coordinating,

and executing Service, Agency, and Combatant Command requirements related to specific capabilities, as they pertain to Nimble Fire and JRICM. This position will be responsible for coordinating subject matter expertise in advanced technical concepts, such as space systems, electronic warfare, or cyber warfare.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

11.2.13 OPERATIONAL ANALYST

The Operational Analyst(s) will primarily support the Capabilities Assessment Branch and be responsible for understanding, interpreting, and coordinating requirements for the Nimble Fire and JRICM exercises, as they pertain to Service, Agency, and Combatant Command requirements related to specific capabilities. This position will be responsible for coordinating subject matter expertise in operational concepts, architectures, and analytic methods.

At a senior level, this position requires a Master's degree with at least ten (10) years of professional experience within IAMD or a related area, a minimum of five (5) of which include supporting the Joint Staff, OSD, Service HQ, or CCMD HQ. Security clearance: Active TS, SCI and SAP eligible.

12.0 APPLICABLE DOCUMENTS

Army Directive 2014-05, Policy and Implementation Procedures for Common Access Card Credentialing and Installation Access for Un-cleared Contractors
Chairman of the Joint Chiefs of Staff Instruction (CJCSI) 3170.01, Joint Capability Integration and Development System (JCIDS)
Chairman of the Joint Chiefs of Staff Manual (CJCSM) 5760.01A VOL I, Joint Staff and Combatant Command Records Management Manual
Code of Federal Regulations, Title 32, Part 117, National Industrial Security Program Manual (NISPOM)
DoD Joint Travel Regulations
Defense Federal Acquisition Regulation Supplement (DFARS)
Department of Defense Manual (DODM) 5200.2, Procedures for the DoD Personnel Security Program
Department of Defense Instruction (DODI) 8500.01, Cybersecurity
Department of Defense Directive (DODD) 5000.01, The Defense Acquisition System
Department of Defense Directive (DODD) 5134.09, Missile Defense Agency
Federal Acquisition Regulation (FAR)
JIAMDO 2022 Operating Charter
Joint Federal Travel Regulations (JFTR)
Joint Publication 3-01, Countering Air and Missile Threats
Joint Staff Contractor In-processing Checklist
Joint Staff Instruction (JSI) 1035.01, Joint Staff Telework and Remote Work Program
Joint Warfighting Concept (classified)
JSP/AUP User Agreement
Missile Defense Review
National Defense Strategy
National Military Strategy
NATO Briefing form
SAAR Form
The Security Agreement (DD Form 441)
United States Code, Title X

13.0 ACRONYMS

ACCM Alternative Compensatory Control Measures
ACTD Advanced Concept Technology Demonstrations
ACMDH Air and Cruise Missile Defense of the Homelands
CABS Comptroller's Accounting and Budget System
CAB Capabilities Assessment Branch
CAC Common Access Card
CDB Capabilities Development Branch
CGA Capability Gap Assessment
CJCS Chairman of the Joint Chiefs of Staff
CJCSI CJCS Instruction
COR Contracting Officer Representative
CPA Chairman's Program Assessment
CPMR Capability Portfolio Management Review
CPR Chairman's Program Review
CRIS Commanders' Resource Integration System
DD Department of Defense
DDFP Deputy Director for Force Protection
DOD Department of Defense
DODD Department of Defense Directive
DODI Department of Defense Instruction
DODM DoD Manual

DPG Defense Planning Guidance
ETMS Electronic Task Management System
FCB Functional Capabilities Board
FYDP Future Years Defense Program
IAMD Integrated Air and Missile Defense
I-JROC International Joint Requirements Oversight Council
IPL Integrated Priority List
I-JROC International Joint Requirements Oversight Council
J8 Joint Staff's Force Structure, Resources, and Assessments Directorate
JAFAN Joint Air Force-Army-Navy
JCIDS Joint Capabilities Integration and Development System
JCB Joint Capabilities Board
JFTR Joint Federal Travel Regulations
JIAMDO Joint Integrated Air and Missile Defense Organization
JIPPL Joint IAMD Portfolio Priority List
JKO Joint Knowledge Online
JRICM Joint Regional IAMD Capability Mix
JROC Joint Requirements Oversight Council
KM/DS Knowledge Management/Decision Support
MDEB Missile Defense Executive Board
MIC Multinational IAMD Community of Practice
MOE Measure of Effectiveness
MOP Measure of Performance
NACI National Agency Check with Inquiries
NATO North Atlantic Treaty Organization
NDCI Negligent Discharge of Classified Information
NDS National Defense Strategy
NIPR Non-classified Internet Protocol Router
NISPOM National Industrial Security Program Manual
NMS National Military Strategy
OCNUS Outside the Continental United States
OSD Office of the Secretary of Defense
P-FCB Protection Functional Capabilities Board
PBR President's Budget Request
PPBE Planning, Programming, Budget, and Execution
PWS Performance Work Statement
QCP Quality Control Program
RDER Rapid Defense Experimentation Reserve
SAAR System Access Approval Request
SAR Special Access Required
SCI Sensitive Classified Information
SETA Systems Engineering and Technical Assistance
SIPR Secret Internet Protocol Router
SOP Standard Operating Procedure
TS Top Secret
UAS Uncrewed Aerial System
USC United States Code
WaRB Warfighter Requirements Branch
WG Working Group

14.0 APPENDICES

14.1 EXAMPLE OF A CERTIFICATE OF NON-DISCLOSURE

MEMORANDUM FOR THE RECORD

SUBJECT: CERTIFICATE OF NON-DISCLOSURE

REFERENCE: Government Contract Number, XXX Joint Integrated Air and Missile Defense Organization System Engineering and Technical Assistance Support Services

This constitutes an agreement between the undersigned employee of XXX Corporation and the Joint Staff. In consideration for special and compartmented access to Planning, Programming, Budgeting, and Execution (PPB&E) information made available through the referenced contract, the contractor agrees not to divulge that information to any other party, individual or corporation.

Specifically, the undersigned employee will not divulge any Planning, Programming, Budgeting, or Execution (PPB&E) information made available through the referenced contract(s) to anyone, including any other member or supervisor of XXX Corporation, without specific written authorization from the Government Contracting Officer or their duly appointed representative.

This restriction applies not only to information from FYDP (Future Years Defense Program) documents, published or unpublished, and the FYDP database, but also to other related program and budget data produced and maintained by DoD organizations. The employee will remain bound by this agreement beyond the term of the underlying contract but may be terminated in writing and will only be self-terminated upon 30 September of the

Fiscal Year upon which data on the specific Future Years divulged has passed. Such termination does not authorize the release of classified, proprietary, or deliberative process information protected from release by other authority.

I understand that my failure to abide by this agreement may form the basis for termination of the contract and coincident actions to recover costs and may form the basis for adverse personal administrative action, to include revocation of security clearance, or criminal action if appropriate.

Print Name/Title _____

SIGNATURE: _____

Date: _____

Print Name: _____

SIGNATURE: _____
Contracting Officer Representative (COR)

Date: _____

Requirements

This is a re-compete for the JIAMDO SETA contract.

Section D - Packaging and Marking

All deliverables shall be packaged and marked in accordance with all applicable security requirements.

Section E - Inspection and Acceptance

52.246-5 Inspection of Services--Cost Reimbursement APR 1984

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		

Section F - Deliveries or Performance

The Period of Performance of the following Firm items are as follows:

6000 24 August 2026 to 23 June 2027
7000 24 August 2026 to 23 June 2027
7001 24 August 2026 to 23 June 2027

The Period of Performance of the following Option items are as follows:

6001 24 June 2027 to 23 June 2028
7002 24 June 2027 to 23 June 2028
7003 24 June 2027 to 23 June 2028
6002 24 June 2028 to 23 June 2029
7004 24 June 2028 to 23 June 2029
7005 24 June 2028 to 23 June 2029
6003 24 June 2029 to 23 June 2030
7006 24 June 2029 to 23 June 2030
7007 24 June 2029 to 23 June 2030
6004 24 June 2030 to 23 June 2031
7008 24 June 2030 to 23 June 2031
7009 24 June 2030 to 23 June 2031

Section G - Contract Administration Data

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s) (COR) for this contract:

_____ TO BE COMPLETED AT TIME OF AWARD _____

NAME

CODE

MAIL ADDRESS

TELEPHONE NUMBER

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

NAME

CODE

MAIL ADDRESS

TELEPHONE NUMBER

SECURITY ADMINISTRATION

The highest level of security that will be required under this Task Order is designated on DD Form 254 attached hereto and made a part hereof.

The name, address and telephone number of the cognizant security office for the awardee is as follows:

___To be completed by the Quoter_____

___and furnished with TO quotation (Volume II)____

The facilities to be utilized in the performance of this effort have been cleared to TOP SECRET level. The quoter should also provide the above information for all quoted subcontractors.

Limitation of Liability - Incremental Funding

This task order is incrementally funded and the amount currently available for payment hereunder is limited to _____ inclusive of fee. It is estimated that these funds will cover the cost of performance through _____. Subject to the provisions of the clause entitled "Limitation of Funds" FAR 52.232-22 of the General Provisions of the basic IDIQ contract, no legal liability on the part of the Government for payment in excess of _____ shall arise unless additional funds are made available and are incorporated as a modification to this task order.

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause--

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall--

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.
- (d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>.
- (e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.
- (f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items--

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

COMBO

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	
Issue By DoDAAC	
Admin DoDAAC**	
Inspect By DoDAAC	
Ship To Code	
Ship From Code	
Mark For Code	
Service Approver (DoDAAC)	
Service Acceptor (DoDAAC)	
Accept at Other DoDAAC	
LPO DoDAAC	
DCAA Auditor DoDAAC	
Other DoDAAC(s)	

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

(End of clause)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this /these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/>

DFARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

(End of clause)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7008	Assignment of Claims (Overseas).	Jun 1997		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

=====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

=====
(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	=====
Issue By DoDAAC	=====
Admin DoDAAC	=====

Inspect By DoDAAC	=====
Ship To Code	=====
Ship From Code	=====
Mark For Code	=====
Service Approver (DoDAAC)	=====
Service Acceptor (DoDAAC)	=====
Accept at Other DoDAAC	=====
LPO DoDAAC	=====
DCAA Auditor DoDAAC	=====
Other DoDAAC(s)	=====

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

=====

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

Note: All the provisions and clauses (FAR, DFARS, NMCARS, etc.) of the base contract apply to the resulting task order (unless otherwise specified in the task order) plus the following:

52.232-20	Limitation of Cost	APR 1984
52.204-2	Security Requirements	MAR 2021
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	Nov 2021
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	AUG 2020
52.237-2	Protection of Government Buildings, Equipment, and Vegetation	APR 1984
52.222-46	Evaluation of Compensation for Professional Employees	FEB 1993
52.232-22	Limitation of Funds	APR 1984
52.245-1	Government Property	JAN 2017
52.245-2	Government Property Installation Operation Services	APR 2012
52.245-9	Use and Charges	APR 2012
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunication Equipment of Services	JAN 2021
252.211-7007	Reporting of Government-Furnished Property	Aug 2012
252.227-7013	Rights in Technical Data - Noncommercial Items	FEB 2014
252.227-7014	Rights in Noncommercial Computer Software and Documentation	FEB 2014
252.227-7015	Technical Data- Commercial Items	FEB 2014
252.239-7001	Information Assurance Contractor Training and Certification	JAN 2008
252.245-7000	Government-Furnished Mapping, Charting and Geodesy Property	APR 2012
252.245-7001	Tagging, Labeling, and Marking of Government-Furnished Property	APR 2012
252.245-7002	Reporting of Loss of Government Property	DEC 2017
252.245-7003	Contractor Property Management System Administration	APR 2012
252.245-7004	Reporting, Reutilization, and Disposal	DEC 2017
252.201-7000	CONTRACTING OFFICER'S REPRESENTATIVE (DEC 1991)	

(a) Definition. "Contracting officer's representative" means an individual designated in accordance with subsection 201.602-2 of the Defense Federal Acquisition Regulation Supplement and authorized in writing by the contracting officer to perform specific technical or administrative functions.

(b) If the Contracting Officer designates a contracting officer's representative (COR), the Contractor will receive a copy of the written designation. It will specify the extent of the COR's authority to act on behalf of the contracting officer. The COR is not authorized to make any commitments or changes that will affect price, quality, quantity, delivery, or any other term or condition of the contract.

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor 30 days before contract expiration, or sooner; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the

contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 58 months.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.210-1	Market Research. (Deviation 2026-O0038)	Feb 2026		
52.215-23	Limitations on Pass-Through Charges. (Deviation 2026-O0038)	Feb 2026		
52.216-8	Fixed Fee.	Jun 2011		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.219-16	Liquidated Damages-Subcontracting Plan. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.232-17	Interest.	May 2014		
52.232-22	Limitation of Funds. (Deviation 2026-O0038)	Feb 2026		
52.232-25	Prompt Payment.	Jan 2017		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.240-92	Security Requirements. (Deviation 2026-O0038)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	Feb 2026		

52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-3	Penalties for Unallowable Costs. (Deviation 2026-O0038)	Feb 2026		
52.242-5	Payments to Small Business Subcontractors.	Jan 2017		
52.242-13	Bankruptcy.	Jul 1995		
52.243-2	Changes-Cost-Reimbursement. (Deviation 2026-O0038)	Feb 2026		
52.243-2	Changes-Cost-Reimbursement. (Deviation 2026-O0038) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.249-6	Termination (Cost-Reimbursement).	May 2004		
52.249-14	Excusable Delays.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7004	Report of Intended Performance Outside the United States and Canada -Submission after Award.	Jul 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.216-7 Allowable Cost and Payment. (Deviation 2026-O0038) (Feb 2026)

ALLOWABLE COST AND PAYMENT (FEB 2026) (DEVIATION 2026-O0038)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the ____ [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

- (A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.
- (B) *General and Administrative expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).
- (C) *Overhead expenses (final indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.
- (D) *Occupancy expenses (intermediate indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.
- (E) Claimed allocation bases, by element of cost, used to distribute indirect costs.
- (F) Facilities capital cost of money factors computation.
- (G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.
- (H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.
- (I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.
- (J) *Subcontract information*. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).
- (K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.
- (L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.
- (M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.
- (N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).
- (O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).
- (iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:
 - (A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.
 - (B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).
 - (C) Identification of prime contracts under which the contractor performs as a subcontractor.
 - (D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).
 - (E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).
 - (F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).
 - (G) Management letter from outside CPAs concerning any internal control weaknesses.
 - (H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.
 - (I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.
 - (J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.
 - (K) Federal and State income tax returns.
 - (L) Securities and Exchange Commission 10-K annual report.
 - (M) Minutes from board of directors meetings.
 - (N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026) Alternate I (Feb 2026)

Alternate I (FEB 2026) (DEVIATION 2026-O0038). As prescribed in 19.101(a)(2)(iii)(B), substitute the following paragraph (g)(1) for paragraph (g)(1) of the basic clause:

(g)(1) The Contractor represents its small business size status for each one of the NAICS codes assigned to this contract.

NAICS Code	Small business concern (yes/no)
==	==
==	==
==	==

[Contracting Officer to insert NAICS codes.]

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

PAYMENT FOR OVERTIME PREMIUMS (FEB 2026) (DEVIATION 2026-O0038)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed * _____ or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above must include all estimated overtime for contract completion and must-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

* Insert either "zero" or the dollar amount agreed to during negotiations.

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____

=====	=====
=====	=====
=====	=====

(End of clause)

52.229-8 Taxes-Foreign Cost-Reimbursement Contracts.

(Mar 1990)

TAXES-FOREIGN COST-REIMBURSEMENT CONTRACTS (MAR 1990)

(a) Any tax or duty from which the United States Government is exempt by agreement with the Government of _____[insert name of the foreign government], or from which the Contractor or any subcontractor under this contract is exempt under the laws of _____[insert name of country], shall not constitute an allowable cost under this contract.

(b) If the Contractor or subcontractor under this contract obtains a foreign tax credit that reduces its Federal income tax liability under the United States Internal Revenue Code (Title 26, U.S. Code) because of the payment of any tax or duty that was reimbursed under this contract, the amount of the reduction shall be paid or credited at the time of such offset to the Government of the United States as the Contracting Officer directs.

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

SUBCONTRACTS (JUN 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

- (1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or
- (2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

=====

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

(End of clause)

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be:

Transportation is for the ____ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the ____ [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. _____. This may be confirmed by contacting _____ [Name and address of the contract administration office listed in the contract].

(End of clause)

52.252-4 Alterations in Contract.

(Apr 1984)

ALTERATIONS IN CONTRACT (APR 1984)

Portions of this contract are altered as follows:

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any ____ [insert regulation name] (48 CFR ____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J - List of Attachments

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-00038) (Feb 2026)
INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-00038)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation 2026-O0038) (Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification.* [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.230-1 Cost Accounting Standards Notices and Certification. (Deviation 2026-O0038) (Feb 2026)

COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (FEB 2026) (DEVIATION 2026-O0038)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes	☐ No
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(End of provision)

52.230-7 Proposal Disclosure-Cost Accounting Practice Changes.

(Apr 2005)

PROPOSAL DISCLOSURE-COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

(1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and

(2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

Sections L&M of this solicitation apply only to those contractors determined to be viable in accordance with the STEP ONE submission instructions contained in the General Information section at the top of this solicitation and were invited to submit a technical and cost/price quote in accordance with the instructions contained in Section L and M of this solicitation.

The Point of Contact for this Solicitation/RFQ is:

Mr. Daniel Moore

Phone: (215) 697-5181

Email: daniel.moore3@navy.mil

Type of Order

The Government Contemplates award of a Cost Plus Fixed Fee Task Order resulting from this solicitation.

INDEPENDENT REVIEW OF AGENCY PROTESTS (FLC NORFOLK) (MAY 1999)

FAR 33.103 sets forth procedures for inexpensive, informal, procedurally simple and expeditious resolution of protests. Where appropriate and permitted by law, NAVSUP Fleet Logistics Center Norfolk, Philadelphia Office encourages the use of those techniques set forth in FAR 33.103 to resolve agency protests. Therefore, quoters may submit protests to the Contracting Officer. Protests should comply with, and will be processed in accordance with the protest procedures set forth in FAR Part 33.103. As an alternative, quoters who protest may request NAVSUP Fleet Logistics Center Norfolk, Philadelphia Office to review the merits of the protest independent of the Contracting Officer who is conducting the source selection. NAVSUP Fleet Logistics Center Norfolk, Philadelphia Office Chief or the Site Director will conduct this independent review.

SUBMISSION OF QUOTE

SUBMISSION OF QUOTES (BEST VALUE / TRADE-OFF)

I. GENERAL

All quotes including those offered by the Prime contractor and their subcontractors shall be submitted via email to daniel.l.moore172.civ@us.navy.mil no later than 5:00 PM EST (Philadelphia, PA) on Friday, 24 May 2026.

It is the responsibility of the Prime Contractor to make certain that all its subcontractors have been approved by the SeaPort-NxG MAC Contracting Officer to team together prior to the closing date and time of the solicitation.

If any technical issues arise with regards to quote submission, the Contractor (Prime or Subcontractor) shall immediately notify Daniel Moore via e-mail, at daniel.l.moore172.civ@us.navy.mil, prior to the closing time of the solicitation. The Task Order Contracting Officer may allow submission of quotes by alternative means. Quotes submitted by alternative means, but still must be received prior to the closing time and date of the solicitation. Absent technical difficulties, however, all quotes and team members' cost information shall be submitted electronically through email to daniel.l.moore172.civ@us.navy.mil by the closing time and date of the solicitation. Quotes submitted by alternative means will be considered only if the Contracting Officer can verify an IT failure prevented the quote from being submitted. Late quotations will not be evaluated and are not eligible for

award. In the event any person who is not a bona fide employee of the quoter participated in the creation, formulation, or writing of any portion of the proposal, a certificate to this effect shall be included in the proposal which shall be signed by an officer of the quoter. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the offeror, and the portion of the proposal in which the person participated.

Quoters must comply with the detailed instructions for the format and content of the quote since failure to provide all required information may preclude evaluation/comparative analysis of the quote.

The Quotes shall be submitted in the following two (2) sections:

Non-Cost Volume I

Price/Cost Volume II

Alternate quotes are not authorized. An objection to any of the terms and conditions of the solicitation will constitute a deficiency which may result in the rejection of the quote.

II. REQUIREMENTS FOR QUOTE CONTENT

The completion and submission of the above items will constitute a quote and will be considered the quoter's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto. Quoters shall respond to all requirements of the solicitation document. Quoters are cautioned not to alter the solicitation. Any affirmative exception to the material terms and conditions of the solicitation will render the quoter ineligible for award. Alternate quotes are not authorized.

Potential quoters are encouraged to carefully review all solicitation requirements and, if they have questions concerning the solicitation, should submit one consolidated list of questions concerning the solicitation via email to the Contract Specialist NO LATER THAN THE DATE AND TIME ESTABLISHED IN THIS SOLICITATION. Questions should be submitted as early as feasible prior to the above date and time; questions received later may be answered at the discretion of the Navy.

In the event any person who is not a bona fide employee of the quoter participated in the creation, formulation, or writing of any portion of the quote, a statement to this effect shall be included in the quote. Such statement shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the quoter and the portion of the quote in which the person participated.

(1) Do not include CLASSIFIED data in your proposal.

(2) Introduction and Purpose - This section specifies the format that quoters should use in quotes submitted in response to this solicitation. The intent is not to restrict the quoters in the manner in which they will perform their work but rather to ensure a certain degree of uniformity in the format of the quotes for evaluation purposes.

(3) Each volume should contain the following items in addition to the other information required by this solicitation:

Cover: The cover should indicate the following:

Title of the proposal

Volume Number

Solicitation number

Name and address of offeror

Contractor point of contact (POC) with POC's email address and phone number

DUNS and CAGE of offeror

Facility Clearance Level (Security Clearance)

Table of Contents: The table of contents should provide detail sufficient to allow the important elements to be easily located.

(4) Requirements for Style: Each quoter shall submit a proposal that clearly and concisely sets forth the contractor's response to the requirements of the solicitation. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired. Elaborate artwork, expensive paper or bindings, and expensive visual or other presentation aids are neither necessary nor desired. The quote shall contain all the pertinent information in sufficient detail in the one area of the quote where it contributes most critically to the discussion. When necessary, the quoter shall refer to the initial discussion and identify its location within its quote.

(5) Page Limitations

The non-cost/price (Volume I) submission is limited to a maximum of 25 pages in length inclusive of any charts, diagrams, and/or other graphics. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12 point font). Lines shall, at a minimum, be single-spaced. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The cover sheet, table of contents (not to exceed three pages per volume), tabs, and dividers will not count toward the page limit. The one exception to the font size requirement shown above is that the "corporate experience and past performance information forms," including any continuation sheets, may be completed with a point size of 10 or greater. Pages submitted in excess of the page limitations described above will not be evaluated. The Corporate Experience and Past Performance information forms count towards the page limit.

Cost/Price Quote (Volume II) is not page limited but the quoter should limit its response to only that price/cost information that is necessary to respond to the requirements of the solicitation. The Navy may exercise discretion in determining which specific pages are considered to be in excess of the page limitations.

III. QUOTE CONTENT

The following Technical Factors will be used to evaluate quotes: Performance Approach and Past Performance. The Performance Approach and Past Performance factors are of equal importance to each other.

Volume I of the quote shall include all information required for the evaluation of the quoter's Non-price/cost quote. It shall exclude any reference to the cost/price aspects of the quote.

(1) Non-Cost Quote - Volume I

(a) Performance Approach

The quoter shall provide in detail a performance approach that will ensure the successful accomplishment of the requirements of the solicitation, including the PWS. Please note that Performance Approach is a forward-thinking methodology, wherein simply parroting/restating the language of the PWS without relevant detail(s) may be deemed insufficient. The quoter shall provide a performance approach with details including but not limited to the below areas of interest to the government:

- In particular, the offeror's proposal will be evaluated with regard to substantiating an ability to perform tasks related to Nimble Fire, the Joint Regional IAMD Capability Mix, JROC processes, and development of classified programs/projects.
- The quoter's approach to supporting JIAMD with assessing IAMD concepts, capabilities, architectures, and roadmap efforts;
- The quoter's approach to assigning appropriately skilled and experienced personnel to tasks;
- The quoter's approach to managing personnel requiring access to Top Secret (TS), Sensitive Compartmented Information (SCI), Alternative Compensatory Control Measures (ACCM), and Special Access Programs (SAPs); and managing workload and deliverables involving classified information, up to and including TS-SCI, ACCM, and SAPs.

The quoter may provide any other information the quoter considers relevant to the solicitation.

(b) Past Performance

The offeror shall demonstrate relevant past performance or affirmatively state that it possesses no relevant past performance. Relevant past performance is performance under contracts or efforts within the past five years that is of similar scope, magnitude, and complexity of the work described by this solicitation.

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts or efforts within the past five (5) years. The offeror should complete a "Past Performance Information Form" for each reference submitted. The Offeror should provide a detailed explanation demonstrating the relevance of the contracts or efforts to the requirements of the solicitation. The offeror should also provide information on any problems encountered on the identified contracts or efforts and the offeror's corrective actions. The Offeror may identify contracts or efforts for its proposed subcontractors among the three (3) past performance references provided in its quotation. If past performance references are provided for a subcontractor, the offeror's quotation should detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. It is the contractor's responsibility to adequately explain the relevance of a reference provided for a subcontractor's past performance to the effort that the subcontractor is proposed to perform under the solicitation.

The "Past Performance Information Form" is an attachment to the solicitation. The forms will count toward the Volume I page limit described above. For additional information regarding a particular reference beyond that which will fit on the form, the offeror may continue onto additional sheets of paper. Such continuation sheet(s) for submitted references will count toward the Volume I page limit. Only a single set of up to three references shall be submitted.

The Past Performance evaluation will result in a cumulative past performance confidence assessment.

The offeror should address its past performance in complying with requirements of the clauses at FAR 52.219-8, "Utilization of Small Business Concerns," and 52.219-9, "Small Business Subcontracting Plan."

Volume II shall include the solicitation pricing pages completed by the quoter and a complete and detailed breakdown of the quoter's cost plus fixed fee (CPFF) with all supporting documentation. For purposes of developing its cost quote, the quoter shall use the level of effort detailed in the table in Section B. The quoter's cost quote shall not deviate from the level of effort set forth in Section B of the solicitation. The cost quote shall support the Non-cost quote. The cost quote shall include all elements of cost

and such other cost information as considered appropriate to support the quoter's submission. The burden of proof for establishing the realism of all proposed costs rests with the quoter. The cost and pricing information shall be completed in accordance with the following:

(a) Separate cost and pricing information shall be submitted for each period - of performance (Base and Options) specified in the Solicitation Section B - Supplies or Services and Prices and Section F - Deliveries and Performance.

(b) Supporting data including labor rates and hours, burden rates, material lists and costs, travel charges, and "other direct costs" used in developing the cost breakdown should be furnished. The supporting data for "other direct costs" shall include an itemization of those costs and an explanation and justification for each cost so itemized.

(c) Uncompensated Overtime. Offerors shall clearly state whether they are proposing on the basis of uncompensated overtime, and, if so, for each applicable labor category set forth the average number of uncompensated overtime hours per week. Uncompensated overtime is not encouraged as work schedules averaging more than 40 hours per week can, over a period of time, lead to degradation of performance. Pursuant to FAR 52.237-10, "Identification of Uncompensated Overtime," quoters are reminded (1) "Whenever there is uncompensated overtime, the adjusted hourly rate (including uncompensated overtime), rather than the hourly rate, shall be applied to all quoted hours, whether regular or overtime hours", (2) "All quoted labor hours subject to the adjusted hourly rate (including uncompensated overtime) shall be identified as either regular or overtime hours, by labor categories, and described at the same level of detail. This is applicable to all quotes whether the labor hours are at the prime or subcontract level. This includes uncompensated overtime hours that are in indirect cost pools for personnel whose regular hours are normally charged direct." In that 52.237-10 requires that the quoter's accounting practices used to estimate uncompensated overtime be consistent with the quoter's cost accounting practices used to accumulate and report uncompensated overtime hours, each quoter quoting on the basis of uncompensated overtime should provide evidence of that consistency. Also, pursuant to FAR 52.237-10, each quoter quoting on the basis of uncompensated overtime is required to include a copy of its policy addressing uncompensated overtime with its proposal. To the extent that a quoter is quoting on the basis of uncompensated overtime, the quoter shall explain why the use of uncompensated overtime will not degrade the level of technical expertise required to fulfill the Government's requirements.

(d) Direct Labor Rates. In order to verify the realism of the quoter's quoted direct labor rates, all quoters should submit, as part of their Price/Cost Portion, documentation substantiating the realism of their quoted direct labor rates. To the extent that a quoter is quoting a subcontractor on a cost-reimbursement basis, the documentation substantiating the accuracy of the subcontractor's quoted direct labor rates is also requested. Acceptable documentation may include the following:

(1) Payroll data (if proposing current, named employees)

(2) Actual billing records showing direct labor rates (if proposing current, named employees).

(3) Copies of signed Letters of Intent that indicate agreed upon annual salary (if proposing named, new hires).

(4) Copies of current or prior fiscal year DCMA Forward Pricing Rate Agreement (FPRA), the quoter's Forward Pricing Rate Proposal (FPRP), Provisional Billing Rate Approval or Provisional Billing Rate Submission, whichever is most recent.

(5) If labor category averages are used as consistent with the quoter's accounting practice and approved by DCAA, provide a detailed narrative and include the calculation used to establish the category average. For example, provide a list of the current salaries for all employees working in that labor category, divided by the number of current employees in that labor category.

(6) If quoting rates that do not fall within one of the above criteria, provide a detailed, comprehensive description of the methodology used to establish the proposed direct rate. The description shall include both the source where the rate was

obtained and a description of how the resulting rate was calculated. Merely stating that a "salary survey" or "market survey" was used is generally not sufficient.

In addition to the foregoing, the quoter should explain why it believes its quoted direct labor rates are realistic for the requirements to be performed, considering the technical and experiential qualifications necessary to accomplish the taskings.

In accordance with FAR 52.222-46 "Evaluation of Compensation for Professional Employees," quoters shall submit a total compensation plan setting forth salaries and fringe benefits proposed for the professional employees who will work under the Contract, including first-tier subcontractor employees. Supporting information should include data such as recognized national and regional compensation surveys and studies of professional, public and private organizations used in establishing the total compensation structure. The compensation levels quoted should reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives.

(e) Indirect Costs. In order to verify the realism of the Quoter's quoted indirect rates, all quoters should submit, as part of their Cost Proposal, documentation substantiating the accuracy of its quoted indirect rates. To the extent that a quoter is proposing a subcontractor on a cost-reimbursement basis, the documentation substantiating the accuracy of the subcontractor's quoted indirect rates is also required. Acceptable documentation may include the following:

(1) Copies of current or prior fiscal year DCMA Forward Pricing Rate Agreement (FPRA), the quoter's Forward Pricing Rate Proposal (FPRP), Provisional Billing Rate Approval or Provisional Billing Rate Submission, whichever is most recent.

(2) If none of the documentation identified in paragraph (1) above is available, historical indirect data, to include provisional rates, actual incurred rates, and annual incurred cost claims (if submitted), shall be provided for the three years prior to the quoter's current fiscal year. This data should include the all of the Quoter's indirect rates as applicable to the Quoter's accounting system. If quoting indirect rates significantly different from recent incurred rates, quoters shall include a detailed explanation and supporting cost data (including budget information).

If the quoter is quoting subcontracts on other than a CPFF basis, the quoter should submit information as to whether the rates for the subcontractors are fixed based on a firm bilateral agreement with the subcontractor or merely proposed. In addition, the quoter shall explain why it believes the subcontractor can perform at those rates.

(f) For quote purposes, the following ratios of Contractor's facilities and Government's facilities labor performance are established for all labor categories:

Contractor's facilities	Government's facilities
% 0	% 100

(g) The quoter shall use the following estimated costs for travel amounts in preparing its cost quote. These estimated amounts will be used as common evaluation amounts in all quoter's submissions; the amounts specified below include no associated indirect costs. The quoter shall include the estimated travel costs specified below in its cost quote, and load the costs appropriately with indirect costs. The estimated amounts below, plus indirect costs, as determined cost realistic by the Government, will be used in the evaluation of quotes, and will be included in resultant contracts as "not-to exceed" amounts under which the quoter will be permitted to invoice its actual costs.

	Travel	ODCs
Base Period	\$636,363.64	\$68,181.82
Option Period I	\$700,000.00	\$150,000.00

Option Period II	\$700,000.00	\$150,000.00
Option Period III	\$700,000.00	\$150,000.00
Option Period IV	\$700,000.00	\$150,000.00

(h) Travel estimated above is for travel and subsistence associated with performance under any resultant contract which will be reimbursed in accordance with the clause entitled "Reimbursement of Travel Costs."

(i) Any quoter having an accounting system which includes, within overhead or G&A, travel and/or material shall specifically state this fact within the price/cost quote.

(j) Any and all subcontracts identified in the Non-cost quote shall be identified and priced in the cost quote. Subcontracts (regardless of dollar value) shall be adequately documented. Subcontractor cost breakdowns may be submitted separately.

(k) If the quoter is currently being audited, or has been audited, by the Defense Contract Audit Agency (DCAA), the name and location of the assigned DCAA office should be furnished with the cost quote.

(l) The quoter shall demonstrate that, as required by FAR 16-301-3(a)(3), its accounting system is adequate for determining costs applicable to the contract. If the quoter has an accounting system that has been determined by DCAA to be adequate for a cost reimbursement contract, the quoter should provide documentation of DCAA's determination. If a quoter's accounting system has not been determined, by DCAA, to be adequate for determining costs applicable to cost reimbursement contracts, the quoter will be considered ineligible for contract award.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		

FAR Clauses Incorporated by Full Text

52.216-1 Type of Contract. (Deviation 2026-O0038) (Feb 2026)

TYPE OF CONTRACT (FEB 2026) (DEVIATION 2026-O0038)

The Government contemplates award of a ____ [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

_____ [Insert one or more Internet addresses]

(End of provision)

52.252-3 Alterations in Solicitation.

(Apr 1984)

ALTERATIONS IN SOLICITATION (APR 1984)

Portions of this solicitation are altered as follows:

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(End of clause)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any _____ [insert regulation name] (48 CFR Chapter _____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: _____ [Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]

(End of provision)

Section M - Evaluation Factors for Award

(CPFF Best Value Tradeoff)

Sections L&M of this solicitation apply only to those contractors determined to be viable in accordance with the STEP ONE submission instructions contained in the General Information section at the top of this solicitation and were invited to submit a technical and cost/price quote in accordance with the instructions contained in Section L and M of this solicitation.

The Navy will provide interested sources a fair opportunity in accordance with FAR 16.505(b) using the procedures and evaluation factors described in this provision. It's emphasized that this is a FAR 16.505 fair opportunity process intended to streamline the source selection and be minimally burdensome for both the Navy and IDIQ awardees interested in competing for this requirement. The procedures of FAR 15.3 do not apply to this source selection. While not an all-inclusive list, some examples of FAR 15.3 requirements that don't apply are the late is late rule, competitive range determinations, the FAR 15.3 rules for discussions, formal evaluations plans, and formal evaluation documentation. The contracting officer will not be obligated to provide quoters an opportunity to respond to adverse past performance under any circumstances. The contracting officer may communicate with a competitor at any time without regard to the FAR 15.3 rules concerning competitive range determinations and discussions. The contracting officer may also identify the competitor most likely to provide best value and hold negotiations solely with that firm to finalize the order and/or negotiate more favorable terms for the Government.

Quotes will be evaluated in accordance with the instructions set forth in Section L as well as the evaluation criteria contained in Section M. The Government intends to award a contract resulting from this solicitation to the responsible quoter whose quote represents the best value after evaluation in accordance with the factors (and subfactors, if any) in the solicitation. The quoter's responses to the instructions in Section L of the solicitation will form the basis of the evaluation of quotes as follows: A rating that is less than "Acceptable" in any non-cost evaluation factor and/or less than a "Satisfactory Confidence" rating in the Past Performance evaluation factor will render a proposal ineligible for award consideration as submitted and the source will be removed from competition. The evaluation of quotes will consider quoter's non-cost quote significantly more important than the quoter's cost quote.

The non-cost evaluation factors are listed below:

Performance Approach
Past Performance

The Performance Approach and Past Performance factors are of equal importance to each other.

In considering the relevance of a quoter's past performance, the past performance references provided by the quoter will be evaluated individually and in the aggregate. Only past performance exhibiting a meaningful degree of relevance shall be considered in the aggregate. The method of aggregation shall be at the discretion of the Agency. If subcontractor past performance is provided as part of the three (3) most relevant contracts or efforts, the subcontractor past performance will be given weight relative to the scope and magnitude of the aspects of the work under the solicitation for which the subcontractor is proposed to perform. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. When an offeror is determined to have relevant past performance, the quality of its relevant past performance will be evaluated. Offerors lacking relevant past performance history will not be evaluated favorably or unfavorably under the Past Performance factor. However, the quotation of an offeror with no relevant past performance history, while not rated favorably or unfavorably for past performance, may not represent the most advantageous quotation to the Government and, thus, may be an unsuccessful quotation when compared to the quotations of other offerors. The evaluation of Past Performance is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating how capable the offeror is of successfully accomplishing the requirements of the solicitation. In determining the rating for the Past Performance evaluation factor, the Government will give greater weight to the contracts or efforts which are determined to have greater relevance to the solicitation. An offeror whose past performance demonstrates either a low expectation or no expectation that the offeror will be able to successfully perform the required effort will be considered ineligible for award.

For all non-cost factors (other than Past Performance), an offeror's quotation must be determined to be Acceptable or better in order to be eligible for award. Marginal is a less-than-acceptable rating. The Government intends to evaluate quotations and award a task order without discussions /communications with offerors. Therefore, the offeror's initial quote should contain the offeror's best terms from a cost and non-cost standpoint. However, the Government reserves the right to conduct discussions/communications if later it is determined by the Contracting Officer to be necessary.

NOTE: All non-cost/price factors: Performance Approach and Past Performance will also be combined to establish a single overall non-cost /price (technical) rating.

Pursuant to a Tradeoff the Government reserves the right to award the task order to other than the quoter with the lowest evaluated CPFF amount or other than the highest rated technical evaluated quote.

Cost will be evaluated on the basis of cost realism pursuant to FAR 15.404-1(d); the method of cost realism analysis to be used is at the discretion of the Contracting Officer.

With regard to FAR 52.237-10, "Identification of Uncompensated Overtime," quotes submitted that are based on the use of uncompensated overtime will be evaluated to ensure that the use of uncompensated overtime will not degrade the level of technical expertise required to fulfill the Government's requirements.

As part of the cost realism analysis, personal compensation will be evaluated. Evaluation of personnel compensation will be part of the cost realism evaluation. Total compensation will be evaluated for realism to assess whether quoted costs would be insufficient to recruit and/or retain qualified personnel, or are otherwise inconsistent with the probable cost of performance.

The Contracting Officer may employ methods of evaluating total compensation such as, but not limited to, comparison to government/commercial salary indices/surveys/market rates, standard deviation analysis, comparison to historical data, or comparison to compensation on similar efforts. The government will also consider supporting data provided by the vendor. The method of evaluation shall be at the Contracting Officer's discretion. The government will evaluate whether the total compensation is sufficient to recruit and/or retain qualified personnel, and if the quoted costs reflect the probable cost of performance for the constituent cost elements. This analysis may include consideration of any other aspect of the vendor's quote that has bearing on the realism of its total compensation package. To the extent total compensation rates would be insufficient to recruit and/or retain qualified personnel, or are otherwise inconsistent with the probable cost of performance, rates shall be adjusted upward to reflect the probable cost. An upward adjustment of any cost element will not necessarily be indicative of performance risk or a vendor's lack of understanding.

The Government has estimated Travel costs and Other-Direct-Costs (ODCs) as specified below:

	Travel	ODCs
Base Period	\$636,363.64	\$68,181.82
Option Period I	\$700,000.00	\$150,000.00
Option Period II	\$700,000.00	\$150,000.00
Option Period III	\$700,000.00	\$150,000.00

Option Period IV \$700,000.00 \$150,000.00

The Government's estimated travel costs and ODCs will be used for the purpose of evaluating the cost proposal. Application of material handling charges and/or G&A rates, as appropriate, will be allowed only if the contractor maintains separate accounts for such costs and will be in addition to the common evaluation amounts.

Cost Limitation Ceilings On Indirect Rates: If a quoter quotes cost limitation ceilings on indirect rates, the quoter is advised that the Government may evaluate the quoter's cost quote accordingly. The decision to quote cost limitations is the quoter's decision. In the event that the quoter quotes indirect rate limitations, these same ceiling rate limitations may be incorporated into any resultant contract without communications/discussions. Under any resultant cost reimbursement contract, the indirect rates billed shall be limited to the ceiling rate(s) identified in the contract. Any costs incurred above the ceiling rates are not allowable.

Options. The Government will evaluate quotes for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quote is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

CLAUSES INCORPORATED BY FULL TEXT

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a cost-plus-fixed-fee contract resulting from this solicitation. (End of provision)

FAR Clauses Incorporated by Reference

Effective Date

NUMBER Title

52.217-5 Evaluation of Options. (Deviation) Feb 2026

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	Feb 2026		